AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Northern District of California

BRENDAN NGWA NFORBI

Plaintiff(s)

v.

SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive

Defendant(s)

Civil Action No. C 26 08271 PHK

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Officer Jose Melano (Badge #023054)
California Highway Patrol, South Sacramento Area
6 Massie Court
Sacramento, CA 95823

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Brendan Ngwa Nforbi
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442 — E-mail: bnn.cdl@gmail.com

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: AUG 10 2026

MARK B. BUSBY

Signature of Clerk or Deputy Clerk

CHARLES HO

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Defendant(s)

Civil Action No. C 26 08271 PHK

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Officer Santiago Meza-Gonzalez (Badge #023295)
California Highway Patrol, Modesto Area
4030 Kiernan Avenue
Modesto, CA 95356

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Brendan Ngwa Nforbi
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
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If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

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Signature of Clerk or Deputy Clerk
CHARLES HO

BRENDAN NGWA NFORBI
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FILED
AUG 17 2026 CH
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI,

Plaintiff,

v.

SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive,

Defendants.

Case No. 3:26-cv-08271-PHK
Hon. Peter H. Kang

FIRST AMENDED COMPLAINT FOR DAMAGES

(42 U.S.C. § 1983)

(1) 4th Amend. -- Judicial Deception;
(2) 14th Amend. -- Fabrication of Evidence;
(3) 4th Amend. -- Unlawful Arrest;
(4) 4th Amend. -- Unlawful Entry;
(5) 4th Amend. -- Unlawful Search;
(6) 1st Amend. -- Retaliation.

[DEMAND FOR JURY TRIAL]

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, files this First Amended Complaint against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising from an arrest on November 1, 2024, on the shoulder of Interstate 580 East in Livermore, Alameda County, California. Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a Class A

Commercial Driver's License (No. F7953179), was parked and asleep in his vehicle when California Highway Patrol Officers Santiago Meza-Gonzalez and Jose Melano approached. Over the course of two hours -- captured in their entirety on the officers' own dashcam recording (CHP Case No. RJ68845) -- the officers opened the vehicle without consent or warrant, identified the only cup in the vehicle as containing urine, continued the investigation after the basis for their initial suspicion had dissipated, arrested Plaintiff within eighteen seconds of his exercise of the statutory right to decline a voluntary preliminary alcohol screening test, and then generated sworn statements containing material representations that are contradicted by the same recording in the CHP's own custody.

2. After the arrest, Officer Meza-Gonzalez executed under penalty of perjury a DS-367 Officer's Statement and a CHP Arrest-Investigation Report, both of which were used to obtain a blood-draw warrant from a magistrate, to initiate a one-year administrative suspension of Plaintiff's commercial driving privileges, and to refer criminal charges to the Alameda County District Attorney. The DS-367 and arrest report contain at least four representations that are materially contradicted by the dashcam recording: a claimed "strong distinct odor of an alcoholic beverage" that neither officer ever verbalizes on the recording; a characterization of Plaintiff's speech as "slurred" when the recording captures extended coherent conversation; a claim that Plaintiff was "very confused and disoriented" when the recording shows him correctly identifying his location and reading distant signage; and a checked box for "Beverage Present: Yes" when the only liquid the officers found was, in Officer Melano's own contemporaneous words on the recording, "piss." Four days later, CHP itself issued a Penal Code section 851.6 Detention Certificate reclassifying the event as "a detention only, not an arrest" for "insufficient grounds." The Alameda County District Attorney declined to file any charges.

3. Plaintiff brings six claims against Defendants in their individual capacities: judicial deception in support of a blood-draw warrant; deliberate fabrication of evidence; unlawful arrest without probable cause; unlawful warrantless entry into a private vehicle; unlawful search; and

First Amendment retaliation for exercising the statutory right to refuse a voluntary preliminary alcohol screening test. Plaintiff seeks compensatory and punitive damages and reasonable attorney's fees under 42 U.S.C. section 1988.

JURISDICTION AND VENUE

4. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights). The claims arise under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

5. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2). All events giving rise to this action occurred in Livermore and Dublin, Alameda County, California, within this District.

6. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is appropriately assigned to the San Francisco Division or the Oakland Division.

PARTIES

7. Plaintiff BRENDAN NGWA NFORBI is a natural person and a resident of the County of San Joaquin, State of California. At all relevant times, he held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles.

8. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is a sworn peace officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

9. Defendant JOSE MELANO (CHP Badge #023054) is a sworn peace officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

10. The true names of Defendants DOES 1 through 10 are presently unknown. On information and belief, each participated in, approved, or acquiesced in the conduct alleged herein. Each is sued in his or her individual capacity. Plaintiff will seek leave to amend when their identities are ascertained.

FACTUAL ALLEGATIONS

A. Plaintiff Was Lawfully Parked and Asleep

11. On the evening of October 31, 2024, and into the early hours of November 1, 2024, Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580. Feeling fatigued, he exited active travel lanes and parked on the right shoulder just west of the Isabel Avenue exit in Livermore, Alameda County. He then rested in the driver's seat. He was not driving. No officer observed him in volitional movement of the vehicle.

12. Plaintiff is a professional commercial truck driver. Pulling off the road to rest when fatigued is consistent with federal Hours-of-Service principles and with CHP's own public safety guidance to drowsy motorists.

B. The Officers' Pre-Contact Hypothesis

13. At approximately 00:54:36, the CHP patrol vehicle's dashcam recording activated as it came to a stop behind Plaintiff's parked Tesla. The recording ran continuously through

approximately 01:57:10, capturing the entirety of the encounter.

14. At 00:55:53, before either officer had approached the vehicle, Officer Melano remarked on the recording: "It's a rental. Huh." At 00:56:05, both officers approached and peered through the windows with flashlights while Plaintiff remained asleep inside. At 00:56:07, Melano stated: "It wasn't here earlier when we passed by."

15. At 00:56:09 -- before either officer had spoken a word to Plaintiff, before Plaintiff was awake, and before any welfare observation had been made -- Officer Melano stated on the recording: "I think it's booze." That statement, directed at a cup visible through the vehicle window, was formed before any contact with Plaintiff and before any observation of his condition.

C. Warrantless Entry

16. At 00:56:43, Officer Melano opened the front passenger-side door of Plaintiff's vehicle. Plaintiff was still asleep. He had not consented to entry. No warrant had been obtained. No exigent circumstance -- no medical emergency, no ongoing crime, no fire, no destruction of evidence, no hot pursuit -- was present or articulated. No other basis for the entry was articulated on the recording.

D. The Cup Is Identified as Urine;
the Initial Suspicion Dissipates

17. Between 00:58:49 and 00:59:07, Officer Melano seized the cup from the vehicle interior, smelled it, and identified its contents on the recording:

Melano: "Is it water? No this is piss. This is pee."

Plaintiff: "I don't know what that is."

Melano: "I'm telling you it's piss. It smells like piss."

18. Officer Melano's own contemporaneous identification of the cup's contents as urine is inconsistent with his earlier hypothesis that the cup contained alcohol. Whatever investigative suspicion the cup had generated dissipated at the moment the officer handling it identified it as something other than an alcoholic beverage and said so aloud.

E. Continued Detention, Field Sobriety Exercises, and PAS Advisement

19. The officers did not terminate the encounter. They ordered Plaintiff out of the vehicle onto uneven ground and administered field sobriety exercises. Officer Melano acknowledged on the recording that the ground conditions were not suitable for reliable FST administration and declined to perform certain balance-dependent exercises for that reason.

20. Throughout the encounter, Plaintiff spoke coherently and articulately. The dashcam audio captures him spelling his surname on request, discussing the alternator design of the rental Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore. At no point in over two hours of continuous recording does either officer verbalize any observation of an alcohol odor emanating from Plaintiff.

21. At 01:10:54, Officer Meza-Gonzalez advised Plaintiff that the preliminary alcohol screening ("PAS") test was voluntary: "You're not required to do this." That advisement is legally accurate. Under California Vehicle Code section 23612(i), a PAS is a preliminary investigative tool, and a driver not on DUI probation may lawfully decline it.

22. At 01:11:03, Officer Meza-Gonzalez stated on the recording: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That statement, captured on the officers' own recording, expressly conditioned the arrest decision on whether Plaintiff consented to or refused the voluntary test.

F. PAS Refusal and Immediate Arrest

23. Plaintiff declined the PAS test.

24. At 01:11:15 through 01:11:33 -- eighteen seconds after the refusal -- Officer Meza-Gonzalez placed Plaintiff under arrest. No new observation or piece of evidence intervened between the refusal and the arrest. The temporal sequence is captured on the recording.

G. The DS-367 and Arrest Report:
Four Material Contradictions with the Dashcam

25. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of perjury, and submitted to DMV, to the reviewing magistrate, and to the Alameda County District Attorney: (a) a DS-367 Age 21 and Older Officer's Statement; and (b) a CHP Arrest-Investigation Report (Case No. RJ68845).

26. Each document contains representations that are materially contradicted by the dashcam recording:

(a) Odor. The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff. In over two hours of continuous dashcam audio, neither officer verbalizes any observation of an alcohol odor at any point. Officers

routinely narrate significant observations on dashcam -- Melano narrates his cup hypothesis (00:56:09), his urine identification (00:58:49-00:59:07), and vehicle details (00:55:53) -- but neither officer narrates detecting an alcohol odor.

(b) Speech. The DS-367 characterizes Plaintiff's speech as "slurred." The recording captures Plaintiff in extended coherent conversation, including spelling his surname letter-by-letter and discussing mechanical details of the rental vehicle.

(c) Orientation. The arrest report states Plaintiff "seemed very confused and disoriented." The recording captures Plaintiff correctly identifying his location as Livermore and reading distant highway signage.

(d) Beverage. The DS-367 contains a checked box for "Beverage Present: Yes." The only liquid the officers found and discussed on the recording was identified by Officer Melano as urine, not a beverage.

27. The arrest report also omits material facts: that the suspected alcohol in the cup was identified on the recording as urine; that Officer Melano declined to administer certain FSTs due to ground conditions; that Officer Meza-Gonzalez expressly advised Plaintiff the PAS was voluntary; and that no officer had observed Plaintiff driving or in volitional control of the vehicle.

28. Of the four contradictions, the "Beverage Present" entry is the most objectively verifiable: the officers' own contemporaneous words on their own recording identify the only liquid as urine, and the DS-367 checkbox characterizes it as a beverage. The odor, speech, and orientation entries are experiential observations that were not verbalized on the recording; Plaintiff alleges they are materially contradicted by the objective record, and their truth or falsity is a question the recording can help resolve.

H. The Blood-Draw Warrant and Forced Extraction

29. Based on the DS-367 and arrest report, a magistrate authorized a warrant for the involuntary extraction of Plaintiff's blood. Plaintiff was transported to the CHP Dublin Area office, where a blood sample was forcibly drawn pursuant to that warrant. A compelled blood draw is a significant bodily intrusion within the meaning of the Fourth Amendment. Missouri v. McNeely, 569 U.S. 141, 148 (2013).

30. If the four contradicted representations identified in paragraph 26 are set aside, and if the omitted facts identified in paragraph 27 are restored, the warrant application would have reflected: a commercial driver parked and asleep on a highway shoulder; a cup identified by the investigating officer as urine; coherent, oriented conversation; no verbalized alcohol odor; and refusal of a test the officer had just described as voluntary. Whether those facts, standing alone, would have supported probable cause for a blood-draw warrant is a question that should be resolved on a developed record, not on the pleadings.

I. Booking and Extended Detention

31. Following the blood extraction, Plaintiff was transported to and booked at Santa Rita Jail in Dublin, California. A parole hold was placed based on the arrest report, extending Plaintiff's custodial confinement beyond the initial arrest.

J. CHP's Subsequent Reclassification:
The Penal Code Section 851.6 Detention Certificate

32. On November 5, 2024, the Dublin CHP issued a Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Certificate states that Plaintiff's taking into custody "was a detention only, not an arrest" and that he was released

under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter is thereafter not deemed an arrest but a detention only.

33. The Detention Certificate is a subsequent official reclassification by the arresting agency itself. It does not, standing alone, establish that the arrest violated the Fourth Amendment at the moment it occurred. It does, however, constitute contemporaneous evidence from the agency best positioned to evaluate the encounter -- evidence consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

K. The District Attorney's Declination

34. CHP referred charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The District Attorney declined to file any accusatory pleading. No criminal case was initiated.

L. Alias Note, Related Actions, and Prior Proceedings

35. Plaintiff has appeared in prior court and administrative proceedings arising from this incident under the name variant "Brendan Ngehsi Newanforbi." That is the same individual as Plaintiff in this action. This Complaint uses "Brendan Ngwa Nforbi" throughout except where quoting from a prior record. In a related action in this District, N.D. Cal. Case No. 4:26-cv-05953-ASK, United States Magistrate Judge Ajay S. Krishnan screened a complaint resting on a substantially overlapping factual record and found it sufficient to proceed under 28 U.S.C. section 1915(e). A prior action arising from the same November 1, 2024 incident, filed in the Eastern District of California, has been voluntarily dismissed without prejudice. This action is not duplicative of any pending proceeding.

M. Damages

36. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered:

(a) Loss of liberty from custodial confinement at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail, including extended confinement under a parole hold predicated on the arrest report;

(b) A compelled blood extraction at the CHP Dublin Area office;

(c) Loss of employment and earning capacity as a Class A commercial driver. At the time of the November 1, 2024 incident, Plaintiff had just commenced a dedicated route assignment with Lily Transportation (Toyota Dedicated, San Ramon, California) through Centerline Drivers, a staffing company, at a regular rate of $33.35 per hour and a premium/overtime rate of $50.03 per hour, as reflected in the contemporaneous Centerline wage notice dated October 31, 2024. Using a conservative schedule of forty regular hours and twenty overtime hours per week -- consistent with dedicated regional truck driving work -- Plaintiff's lost earnings from November 1, 2024 through the filing of this Complaint (approximately 92 weeks) exceed $214,000. This figure does not include lost employment benefits, future impairment of earning capacity, or other consequential economic losses;

(d) A one-year administrative-per-se suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), with an accompanying one-year commercial disqualification, together with a three-year SR-22 financial-responsibility requirement (annual premiums of $281.28) with a maintenance period extending through approximately May 2029, and a $125.00 CDL reissue fee;

(e) Vehicle towing and impound fees; and

(f) Emotional distress, anxiety, humiliation, sleep disturbance, and reputational injury from having his professional reputation damaged by sworn statements that are materially contradicted by the officers' own contemporaneous recording.

37. The DS-367 was a material statutory and evidentiary basis for initiation and adjudication of the APS proceeding. Plaintiff alleges that the materially false representations in the DS-367 foreseeably caused or materially contributed to the resulting suspension of his commercial driving privileges. The wage loss is a direct and foreseeable consequence of that suspension. The total economic damages, including lost wages, benefits, and out-of-pocket expenses, exceed $250,000, excluding emotional distress and punitive damages to be proven at trial.

FIRST CAUSE OF ACTION

Fourth Amendment – Judicial Deception and Unlawful Bodily Intrusion Under a Warrant Obtained Through Materially False or Misleading Statements
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

38. Plaintiff re-alleges paragraphs 1 through 37.

39. An officer violates the Fourth Amendment by submitting a warrant application containing statements that are deliberately or recklessly false, or that omit material facts, if the application -- stripped of the false statements and supplemented with the omitted facts -- would not support probable cause. Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011).

40. On information and belief, Defendant Meza-Gonzalez executed the DS-367 and arrest report under penalty of perjury and submitted them, or caused them to be submitted, to the reviewing magistrate as the evidentiary basis for the blood-draw warrant application. The challenged representations identified in paragraph 26 were material to the probable-cause determination. When those representations are set aside and the omitted facts identified in paragraph 27 are restored, the remaining application does not plausibly support probable cause to believe Plaintiff was driving under the influence. Benavidez v. County of San Diego, 993 F.3d 1134, 1146-47 (9th Cir. 2021) (applying Franks corrected-affidavit test).

41. Defendant Meza-Gonzalez acted with at least reckless disregard for the truth. An officer who executes a sworn statement while a contemporaneous recording of the same encounter -- stored on his own patrol vehicle -- contains information materially inconsistent with that sworn statement acts with reckless disregard, at minimum. The right to be free from a warrant obtained through materially false or misleading statements was clearly established before November 1, 2024. Franks, 438 U.S. at 155-56; Chism, 661 F.3d at 386; Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

42. As a direct and proximate result, Plaintiff suffered a compelled blood extraction without valid probable cause, and the further damages alleged in paragraphs 36-37.

SECOND CAUSE OF ACTION

Fourteenth Amendment – Deliberate Fabrication of Evidence

(42 U.S.C. § 1983 – Against Defendant Meza-Gonzalez and DOES 1-10)

43. Plaintiff re-alleges paragraphs 1 through 37.

44. The Fourteenth Amendment prohibits state actors from deliberately fabricating evidence and using it to bring about deprivations of liberty or property. Devereaux v. Abbey, 263 F.3d 1070, 1076 (9th Cir. 2001) (en banc). Qualified immunity is not available to officers who deliberately fabricate evidence. Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010).

45. Defendant Meza-Gonzalez executed sworn statements containing the four materially contradicted representations identified in paragraph 26. Those statements were used to obtain the blood-draw warrant, to sustain custodial confinement (including under a parole hold), to initiate and sustain the DMV administrative-per-se suspension of Plaintiff's Class A CDL, and to refer charges to the District Attorney.

46. Defendant Meza-Gonzalez personally participated in the encounter the dashcam recorded. He personally heard Plaintiff's speech. He personally observed Plaintiff's demeanor and orientation. He was present when Officer Melano identified the cup's contents as urine. He personally administered the PAS advisement and effected the arrest. He then executed sworn statements containing representations materially inconsistent with what he had personally observed and what his own agency's recording captured. An officer who knowingly and deliberately includes materially false representations in sworn investigative documents violates the Fourteenth Amendment. Spencer v. Peters, 857 F.3d 789, 798 (9th Cir. 2017) (deliberate mischaracterization of evidence in investigative reports); Devereaux, 263 F.3d at 1076.

47. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 36-37.

THIRD CAUSE OF ACTION

Fourth Amendment – Unlawful Arrest and Detention

(42 U.S.C. § 1983 – Against Both Defendants and DOES 1-10)

48. Plaintiff re-alleges paragraphs 1 through 37.

49. The Fourth Amendment requires probable cause for a warrantless arrest. Probable cause exists when the facts and circumstances known to the officer at the time are sufficient for a prudent person to believe that the suspect has committed a crime. Devenpeck v. Alford, 543 U.S. 146, 152 (2004).

50. At the moment of arrest (01:11:15-01:11:33), the facts known to the officers, as reflected on the recording, included: Plaintiff was parked and asleep when contacted; the only suspected "beverage" had been identified as urine; Plaintiff had spoken coherently and identified his location; no officer had verbalized an alcohol odor; Officer Melano had declined to administer certain FSTs due to ground conditions; and Plaintiff had exercised his statutory right under Vehicle Code section 23612(i) to decline a voluntary PAS test. No new observation or evidence intervened between the PAS refusal and the arrest. Plaintiff's exercise of the statutory right to refuse the PAS test could not itself supply the probable cause that was otherwise absent. Thomas v. Dillard, 818 F.3d 864, 884-85 (9th Cir. 2016) (refusal to consent to a search cannot create reasonable suspicion or establish probable cause). Moreover, officers evaluating probable cause may not disregard facts tending to dissipate it. Sialoi v. City of San Diego, 823 F.3d 1223, 1233 (9th Cir. 2016) (continued seizure unlawful after officers learned that suspected weapon was a toy; applying United States v. Lopez, 482 F.3d 1067 (9th Cir. 2007)). Here, Officer Melano's contemporaneous identification of the cup's contents as urine was a fact tending to dissipate the suspicion that had prompted the investigation, and Defendants disregarded it.

51. CHP's subsequent issuance of the Penal Code section 851.6 Detention Certificate -- reclassifying the event as a detention for "insufficient grounds" -- and the Alameda County District Attorney's declination to file charges are consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

52. The right to be free from arrest without probable cause was clearly established well before November 1, 2024. Beck v. Ohio, 379 U.S. 89 (1964); Devenpeck, 543 U.S. at 152.

53. Defendant Meza-Gonzalez personally effected the arrest. Defendant Melano was an integral participant: he conducted the initial vehicle entry and search, administered the field sobriety exercises, communicated his investigative findings to Meza-Gonzalez throughout the encounter, and remained present and actively engaged in the joint investigation up to and through the moment of arrest without objection or intervention. The arrest was the culmination of a joint investigation in which both officers participated and to which both officers contributed. As a direct and proximate result, Plaintiff was subjected to custodial confinement, including loss of liberty at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail.

FOURTH CAUSE OF ACTION

Fourth Amendment – Unlawful Warrantless Entry
(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

54. Plaintiff re-alleges paragraphs 1 through 37.

55. Opening the door of a private vehicle and entering or reaching into its interior constitutes a Fourth Amendment search. United States v. Ngumezi, 980 F.3d 1285, 1289 (9th Cir. 2020) (officer who opened passenger door, leaned inside, and questioned driver conducted a Fourth Amendment search). A warrantless search is presumptively unreasonable absent consent

or a recognized exception.

56. At 00:56:43, Defendant Melano opened the front passenger-side door of Plaintiff's vehicle while Plaintiff was asleep. No consent was given. No warrant existed. No objectively observable facts indicated that Plaintiff required immediate medical assistance: the dashcam shows a vehicle parked intact on the shoulder with no visible damage, no smoke or fire, no crash debris, and an occupant in a normal resting posture. The officers' own words on the recording preceding the entry ("It's a rental," "It wasn't here earlier," "I think it's booze") reflect investigative interest, not a response to an observed emergency. Ngumezi, 980 F.3d at 1289.

57. The right to be free from warrantless entry into a vehicle absent consent, exigency, or an applicable exception was clearly established before November 1, 2024. Ngumezi, 980 F.3d at 1289.

58. Defendant Melano personally opened the door. Defendant Meza-Gonzalez was present and did not intervene. As a direct and proximate result of the warrantless entry, Plaintiff's constitutionally protected privacy interest in his vehicle was violated, and the entry initiated the chain of events leading to the subsequent search, prolonged detention, arrest, and forced blood extraction.

FIFTH CAUSE OF ACTION

Fourth Amendment – Unlawful Search

(42 U.S.C. § 1983 – Against Both Defendants and DOES 1-10)

59. Plaintiff re-alleges paragraphs 1 through 37.

60. Following the warrantless entry, Defendant Melano reached into the vehicle, seized

the cup from the center console area, smelled it, and examined its contents. Defendant Meza-Gonzalez directed Plaintiff's attention and movements during the encounter while Melano conducted the physical search. No consent was given. No warrant existed. No exigent circumstance was present.

61. To the extent probable cause to search arose from Melano's observation of the cup, any such basis was materially undermined when Melano personally seized, smelled, and identified the liquid as urine (00:58:49-00:59:07). The continuing warrantless search of the vehicle thereafter required some independent lawful justification. None was present. Ngumezi, 980 F.3d at 1289.

62. The right to be free from a warrantless vehicle search absent probable cause, consent, or an applicable exception was clearly established before November 1, 2024. Ngumezi, 980 F.3d at 1289.

63. As a direct and proximate result of the unlawful search, evidence obtained from Plaintiff's vehicle was used to prolong the detention and to support the investigation that culminated in the arrest and forced blood extraction.

SIXTH CAUSE OF ACTION

First Amendment -- Retaliation for Exercise of Statutory Right to Refuse a Voluntary Preliminary Alcohol Screening Test

(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

64. Plaintiff re-alleges paragraphs 1 through 37.

65. To state a First Amendment retaliation claim, a plaintiff must allege (i) constitutionally protected activity; (ii) an adverse action; and (iii) a causal connection. Nieves v. Bartlett, 587 U.S. 391, 398-99 (2019); Ballentine v. Tucker, 28 F.4th 54, 62 (9th Cir. 2022).

66. Plaintiff engaged in protected activity. Under California Vehicle Code section 23612(i), a PAS test is a voluntary investigative tool for drivers not on DUI probation. Refusal carries no statutory consequence. Officer Meza-Gonzalez confirmed its voluntary nature at timestamp 01:10:54: "You're not required to do this." The exercise of a statutory right to refuse a voluntary investigative procedure is constitutionally protected conduct. Ballentine, 28 F.4th at 62; Camara v. Municipal Court, 387 U.S. 523, 528-33 (1967).

67. Defendants took an adverse action. At timestamp 01:11:15, Plaintiff declined the PAS test. Eighteen seconds later, at timestamp 01:11:33, Officer Meza-Gonzalez placed Plaintiff under arrest. No new evidence of impairment was observed or articulated between the refusal and the arrest.

68. The arrest was causally connected to the refusal. The temporal proximity -- eighteen seconds -- supports an inference of causation. That inference is reinforced by Officer Meza-Gonzalez's own statement at timestamp 01:11:03, captured on the dashcam recording: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That statement, made moments before the refusal and arrest, expressly conditioned the arrest decision on whether Plaintiff consented to or refused the voluntary test.

69. Nieves does not bar this claim. Under Nieves, a retaliatory-arrest claim survives even if probable cause existed if the plaintiff provides objective evidence that similarly situated individuals who did not engage in the same protected conduct were not arrested. 587 U.S. at 407; see also Gonzalez v. Trevino, 602 U.S. 653 (2024) (plaintiff need not identify virtually identical comparator but must provide objective evidence of differential treatment). Here, the PAS test is

statutorily voluntary under section 23612(i) and refusal carries no statutory penalty; drivers who comply with a PAS request are not subjected to immediate custodial arrest solely on that basis when, as here, the remaining objective indicia of impairment are absent. In the alternative, as alleged in the Third Cause of Action, no probable cause existed for the arrest. The right to be free from retaliatory arrest for exercising a statutory right was clearly established before November 1, 2024. Ballentine, 28 F.4th at 62; Nieves, 587 U.S. at 398-99.

70. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 36-37.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, as follows:

A. Compensatory damages against each Defendant in an amount according to proof at trial, including but not limited to: loss of liberty and physical and emotional suffering from the unlawful detention, arrest, and compelled blood extraction; lost wages and lost earning capacity exceeding $214,000 from November 1, 2024 through the present, calculated from Plaintiff's contemporaneous rate of $33.35 regular and $50.03 premium; continuing impairment of future earning capacity as a Class A commercial driver; out-of-pocket expenses including SR-22 premiums, CDL reissue fee, and vehicle towing and impound costs; and emotional distress, humiliation, and reputational injury;

B. Punitive damages against each Defendant in an amount sufficient to punish and deter;

C. Taxable costs as permitted by law, and reasonable attorney's fees under 42 U.S.C.

section 1988 to the extent recoverable;

D. Pre- and post-judgment interest; and

E. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff demands a trial by jury on all issues so triable.

Dated: August 17, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

Civil Action No. 3:26-cv-08271-PHK

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* Jose Melano #023054

was received by me on *(date)* 08/13/2026 .

☐ I personally served the summons on the individual at *(place)*

on *(date)* ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)*

, a person of suitable age and discretion who resides there,

on *(date)* , and mailed a copy to the individual's last known address; or

☑ I served the summons on *(name of individual)* Officer Reed , who is

designated by law to accept service of process on behalf of *(name of organization)* California Highway Patrol

6 Massie Court Sacramento, CA 95823 on *(date)* 08/14/2026 ; or

☐ I returned the summons unexecuted because : or

☐ Other *(specify)*:

My fees are $ 85.00 for travel and $ for services, for a total of $ 85.00 .

I declare under penalty of perjury that this information is true.

Date: 08/14/2026

Clifford Block

Server's signature

FILED

AUG 17 2026 CH

CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

Clifford Black Owner C&P Process Server 2021-12

Printed name and title

22927 Marconi Ave Sacramento, CA 95821

Server's address

Additional information regarding attempted service, etc:

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. SANTIAGO MEZA-GONZALEZ ET AL, Defendant.	Case No. 26-cv-08271-PHK **ORDER SETTING INITIAL CASE MANAGEMENT CONFERENCE AND ADR DEADLINES**

This action is assigned to the Honorable Peter H. Kang.

Service of documents. When serving the complaint or notice of removal, the plaintiff or removing defendant must serve on all other parties a copy of this order and the supplementary material specified in Civil Local Rule 4-2.

Magistrate Judge Jurisdiction. This case has been randomly assigned to a magistrate judge, who, with written consent of all parties, may conduct all proceedings in a case, including all pretrial and trial proceedings, entry of judgment and post-trial motions, with appeal directly to the United States Court of Appeals for the Ninth Circuit. See "Consenting to the Jurisdiction of a Magistrate Judge" on the Court's webpage at www.cand.uscourts.gov for more information.

Plaintiff or the removing party must complete and file the attached form "Consent or Declination to Magistrate Judge Jurisdiction" (also available at www.cand.uscourts.gov/forms) within 14 days of case initiation, and all other parties must do so within 14 days of appearing in the case, or as otherwise ordered by the Clerk or magistrate judge.

Availability of Alternative Dispute Resolution. This action is assigned to the Alternative Dispute Resolution (ADR) Multi-Option Program governed by ADR Local Rule 3. Counsel and clients shall familiarize themselves with that rule and with the material entitled "Dispute Resolution Procedures in the Northern District of California" on the Court's ADR webpage at www.cand.uscourts.gov/adr.

Important case management dates. Counsel must comply with the dates listed below unless the judge otherwise orders.

Case Management Event	**Deadline**
File Certification of Conflicts and Interested Entities or Persons. (See Civil L.R. 3-15)	Upon first appearance (supplement as necessary)
Deadline to file ADR Certification. (See ADR L.R. 3)	11/12/2026
Deadline to meet and confer re: initial disclosures, early settlement, ADR process selection, and discovery plan. (See F.R. Civ. P. 26(f))	11/12/2026
Deadline to make initial disclosures. (See F.R. Civ. P. 26(a)(1))	11/25/2026
Deadline to file Joint Case Management Statement. (See Standing Order for All Judges of the Northern District of California)	11/25/2026
Initial Case Management Conference location: **Courtroom F, 15th Floor, 450 Golden Gate Avenue, San Francisco, CA**	12/2/2026 at 11:00 AM

NOTE: If the date of the initial case management conference is changed, all the above deadlines are adjusted accordingly unless otherwise ordered.

Reset Form

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI

Plaintiff(s),

v.

SANTIAGO MEZA-GONZALEZ, et al.

Defendant(s).

Case No. C 26 08271 PHK

CONSENT OR DECLINATION TO MAGISTRATE JUDGE JURISDICTION

INSTRUCTIONS: Please indicate below by checking **one** of the two boxes whether you (if you are the party) or the party you represent (if you are an attorney in the case) choose(s) to consent or decline to magistrate judge jurisdiction in this matter. Sign this form below your selection.

☑ **CONSENT to Magistrate Judge Jurisdiction**

In accordance with the provisions of 28 U.S.C. § 636(c), I voluntarily **consent** to have a United States magistrate judge conduct all further proceedings in this case, including trial and entry of final judgment. I understand that appeal from the judgment shall be taken directly to the United States Court of Appeals for the Ninth Circuit.

OR

☐ **DECLINE Magistrate Judge Jurisdiction**

In accordance with the provisions of 28 U.S.C. § 636(c), I **decline** to have a United States magistrate judge conduct all further proceedings in this case and I hereby request that this case be reassigned to a United States district judge.

DATE: August 7, 20 26

NAME: Brendan Ngwa Nforbi

Signature

COUNSEL FOR (OR "PRO SE"): PRO SE

BRENDAN NGWA NFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

FILED CH
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CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

PHK

C 26 08271

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (42 U.S.C. § 1983) (1) 4th Amend. -- Unlawful Entry; (2) 4th Amend. -- Unlawful Search; (3) 4th Amend. -- Unlawful Arrest; (4) 4th Amend. -- Judicial Deception; (5) 14th Amend. -- Fabrication of Evidence; (6) 1st Amend. -- Retaliation. **[DEMAND FOR JURY TRIAL]**

NC

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising out of a warrantless roadside encounter that escalated -- in less than two hours, and in defiance of the officers' own contemporaneous audio-video recording -- into an unlawful vehicle entry, a suspicionless search, a false arrest predicated on a fabricated criminal-investigative hypothesis, a coerced and

fraudulently justified blood extraction, and multiple days of custodial confinement. Every material representation the arresting officer later swore to under penalty of perjury -- to a magistrate, to the Department of Motor Vehicles, and to the Alameda County District Attorney -- is directly contradicted by the California Highway Patrol's own dashcam recording of the same encounter, which has been in CHP's exclusive custody since the moment it was created.

2. The incident occurred on November 1, 2024, on the right shoulder of Interstate 580 East, just west of Isabel Avenue, in Livermore, Alameda County, California -- within the Northern District of California and within the intra-district assignment area of the Oakland/San Francisco Division under Civil L.R. 3-2(d). Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a valid Class A Commercial Driver's License with doubles/triples and tank vehicle endorsements, had pulled his rental Tesla Model Y to the shoulder to sleep off fatigue -- exactly what federal Hours-of-Service rules and CHP's own public safety messaging instruct commercial drivers to do. He was doing precisely what a responsible commercial driver is supposed to do.

3. Defendants Officer Santiago Meza-Gonzalez (CHP Badge #023295) and Officer Jose Melano (CHP Badge #023054) approached under the guise of a welfare check. Within fourteen seconds of dashcam audio activation -- and before either officer had spoken a single word to Plaintiff, observed Plaintiff, or conducted anything remotely resembling a welfare assessment -- Officer Melano audibly announced a criminal-investigative hypothesis on the recording: "I think it's booze." That pre-contact hypothesis, formed on nothing more than the presence of a cup visible through the window of a lawfully parked vehicle, controlled every step of what followed.

4. Within minutes, Officer Melano opened the locked front passenger door of Plaintiff's vehicle without consent, without a warrant, and without any exigency -- and before Plaintiff had even fully awakened. Within a few minutes more, Officer Melano seized a cup from the vehicle's interior, smelled it, and identified its contents in unmistakable terms on the recording: "Is it water? No this is piss. This is pee." And again: "I'm telling you it's piss. It smells like piss." The

single articulable basis for the officers' entire investigation had, by their own contemporaneous words captured on their own recording, been conclusively dispelled.

5. Rather than terminate the encounter, the officers continued. They prolonged the detention, ordered Plaintiff out of the vehicle onto uneven ground, put him through field sobriety exercises Officer Melano himself acknowledged on the recording could not be reliably administered in that environment, and then -- when Plaintiff exercised his statutory right to decline a preliminary alcohol screening ("PAS") test that Officer Meza-Gonzalez had just told him was voluntary -- Meza-Gonzalez placed him under arrest for driving under the influence. There is no audible expression of an alcohol odor, at any point, from either officer on the entire dashcam recording. There is no observation of any "slurring," "confusion," or "disorientation" recorded contemporaneously with the encounter. Plaintiff was, on the recording, coherent, articulate, and oriented -- spelling his surname on request, discussing his rental car's alternator, explaining CDL fatigue protocols, and reading distant highway signage.

6. Officer Meza-Gonzalez then prepared, and executed under penalty of perjury, a sworn law enforcement report (CHP Case No. RJ68845) and a DS-367 Age 21 and Older Officer's Statement submitted to DMV. Each contains at least four material fabrications directly contradicted by the dashcam recording in CHP's own custody: (a) a fabricated "strong distinct odor of an alcoholic beverage" that neither officer ever verbalized during the encounter; (b) a false characterization of Plaintiff's speech as "slurred"; (c) a false claim that Plaintiff was "very confused and disoriented"; and (d) a false checkbox entry that a "beverage" was present in the vehicle -- when the only liquid the officers ever found or discussed was, in Officer Melano's own words, "piss." These fabrications were not incidental. They were the sole basis for (i) a search warrant compelling a magistrate to authorize the involuntary extraction of Plaintiff's blood at the Dublin CHP office; (ii) a DMV administrative-per-se suspension that stripped Plaintiff of his commercial driving privileges for a full year; and (iii) a parole hold that extended Plaintiff's incarceration at Santa Rita Jail. Without the fabrications, the affidavit would have contained no

probable cause to arrest, none to search, and none to justify a bodily intrusion.

7. CHP itself has already conceded the arrest was unlawful. On November 5, 2024 -- four days after the incident -- the Dublin CHP issued a formal Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845, expressly reclassifying Plaintiff's taking into custody as "a detention only, not an arrest," and releasing him under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter "shall not be deemed an arrest, but a detention only." The Alameda County District Attorney, to whom CHP recommended charges under Vehicle Code sections 23152(a), 23152(b), and 23578, declined to file any accusatory pleading. Both the arresting agency and the prosecuting authority have formally acknowledged that the arrest lacked evidentiary basis.

8. A related civil-rights complaint filed by Plaintiff in this District (N.D. Cal. Case No. 4:26-cv-05953-ASK), resting on the same November 1, 2024 factual record -- including the same dashcam contradictions of the same sworn CHP report -- has already been screened by United States Magistrate Judge Ambadas S. Krishnan under 28 U.S.C. section 1915(e). On June 29, 2026, Judge Krishnan found the allegations sufficient to proceed past screening. A coordinate Article III judge, on this same evidentiary record, has therefore already concluded that the underlying constitutional claims are plausible. Plaintiff respectfully submits that the same conclusion follows a fortiori as to the officers who authored the recording being contradicted. The alias relationship between the caption in that action and the caption in this one is explained at paragraphs 50-51, below.

JURISDICTION AND VENUE

9. This Court has original subject-matter jurisdiction over Plaintiff's federal claims under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil

rights), because those claims arise under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

10. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2), because a substantial part -- indeed, the entirety -- of the events and omissions giving rise to Plaintiff's claims occurred in this District, on Interstate 580 East in Livermore, Alameda County, California, and at the CHP Dublin Area office and Santa Rita Jail in Dublin, Alameda County, California.

11. INTRADISTRICT ASSIGNMENT. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is therefore appropriately assigned to the San Francisco Division or Oakland Division of this Court.

PARTIES

12. Plaintiff BRENDAN NGWA NFORBI is, and at all times relevant herein was, a natural person and a resident of the County of San Joaquin, State of California. Plaintiff is a commercial truck driver holding a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles.

13. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is, and at all times relevant herein was, a sworn peace officer employed by the California Highway Patrol and assigned to the CHP Dublin Area, 4999 Gleason Drive, Dublin, California 94568. At all times relevant, Meza-Gonzalez was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of his employment as a CHP officer. Meza-Gonzalez is sued in his individual capacity only.

14. Defendant JOSE MELANO (CHP Badge #023054) is, and at all times relevant herein

was, a sworn peace officer employed by the California Highway Patrol and assigned to the CHP Dublin Area, 4999 Gleason Drive, Dublin, California 94568. At all times relevant, Melano was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of his employment as a CHP officer. Melano is sued in his individual capacity only.

15. The true names and capacities, whether individual, corporate, associate, or otherwise, of Defendants DOES 1 through 10 are presently unknown to Plaintiff, despite reasonable investigation. On information and belief, each fictitiously named Defendant is a CHP officer, supervisor, evidence custodian, or other person who: (a) participated directly in the November 1, 2024 detention, arrest, search, seizure, bodily intrusion, or fabricated documentation of Plaintiff; (b) approved, ratified, adopted, or acquiesced in the wrongful conduct alleged herein; or (c) knew of the wrongful conduct and failed to intervene or correct it. Each DOE Defendant is sued in his or her individual capacity only. Plaintiff will seek leave to amend this Complaint to state the true names and capacities of the DOE Defendants when ascertained.

FACTUAL ALLEGATIONS

A. Plaintiff's Occupation, Licensure, and the Reason He Was Lawfully Parked on the Shoulder

16. At all relevant times, Plaintiff held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles. His livelihood depended on his CDL and his ability to drive commercial vehicles.

17. On the evening of October 31, 2024, and into the early hours of November 1, 2024, Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580 in Alameda County, California. Feeling fatigued, and mindful of federal Hours-of-Service principles and

CHP's own public safety guidance that fatigued drivers should pull over rather than continue on the highway, Plaintiff exited active travel lanes and pulled his vehicle onto the right shoulder of I-580 East, just west of the Isabel Avenue exit in Livermore. He then rested in the driver's seat with the vehicle stationary. He was not driving. He was not in volitional control of the vehicle within the meaning of Mercer v. DMV, 53 Cal.3d 753 (1991), and he had committed no observable Vehicle Code violation.

B. The Dashcam Recording: A Complete, Time-Stamped Contemporaneous Audio-Video Record in CHP's Own Custody

18. At all times relevant to this encounter, Defendants were operating a CHP patrol vehicle equipped with in-car audio-video recording equipment. That equipment activated at approximately 00:54:36 hours and recorded continuously through approximately 01:57:10 hours -- capturing the entirety of the officers' pre-contact observations, their approach and entry into Plaintiff's vehicle, every word each officer spoke both to Plaintiff and to each other, every question and answer, the field-sobriety exercises, the PAS advisement and refusal, the arrest, and the transport thereafter. The recording (CHP Case No. RJ68845; duration 00:54:36-01:57:10) has been in CHP's exclusive custody at all times since it was created.

19. The dashcam recording is not disputed. It is not ambiguous. It is not incomplete in any material respect. And it directly contradicts, in Defendants' own contemporaneous words and observable conduct, every material representation Defendant Meza-Gonzalez later swore to in the DS-367 Officer's Statement and the CHP arrest-investigation report he executed under penalty of perjury. Selected time-stamped excerpts follow in the paragraphs below.

C. Pre-Contact Criminal Hypothesis: Officer Melano Announces "I think it's booze" Before Contact

20. At timestamp 00:55:37, dashcam audio activates as the CHP patrol vehicle comes to a stop behind Plaintiff's parked Tesla.

21. At timestamp 00:55:53, before either officer has approached the vehicle, Officer Melano remarks on the recording: "It's a rental. Huh." That is a categorization statement about the vehicle, not a welfare observation about its occupant.

22. At timestamp 00:56:05, both officers approach and peer into Plaintiff's vehicle windows with flashlights, while Plaintiff remains asleep inside. This is investigative conduct -- searching the passenger cabin from outside the vehicle with directed illumination -- rather than a caretaking response to any observed medical emergency.

23. At timestamp 00:56:07, Officer Melano volunteers on the recording: "It wasn't here earlier when we passed by." That statement establishes that the officers had been patrolling this stretch of highway and had personally observed the same location without Plaintiff's vehicle present. It is not a welfare observation.

24. At timestamp 00:56:09 -- approximately fourteen seconds after audio activation, before either officer has spoken a single word to Plaintiff, before either officer has observed anything about Plaintiff's condition, and before Plaintiff is even awake -- Officer Melano audibly announces a criminal-investigative hypothesis on the recording: "I think it's booze."

25. That pre-contact hypothesis was formed on nothing more than the presence of a cup visible through the window of a lawfully parked rental vehicle whose adult driver was resting in the driver's seat on the shoulder of an interstate highway in the early morning hours. It is not a

welfare observation. It is not probable cause. It is not even reasonable suspicion. It is a guess -- and one that Officer Melano's own words minutes later would show was wrong.

D. Warrantless Entry: Officer Melano Opens the Locked Passenger Door Without Consent or Exigency

26. At timestamp 00:56:43, Officer Melano opens the front passenger-side door of Plaintiff's vehicle. Plaintiff is still asleep. Plaintiff has not consented, expressly or by implication, to entry into the vehicle. There is no warrant. There is no exigent circumstance -- no observed medical emergency, no ongoing crime, no fire, no destruction of evidence, no hot pursuit. There is no automobile-exception probable cause independent of Officer Melano's own "I think it's booze" guess. The door is opened simply because Officer Melano decides to open it.

27. This entry into a constitutionally protected area occurred without consent, without a warrant, and without any recognized exception to the warrant requirement. See Kentucky v. King, 563 U.S. 452, 459 (2011) (warrantless entry "generally unreasonable"); Collins v. Virginia, 584 U.S. 586, 592 (2018) (automobile exception does not authorize entry into constitutionally protected areas without probable cause); Payton v. New York, 445 U.S. 573, 585-90 (1980) (physical entry is chief evil against which the Fourth Amendment is directed).

E. The "Booze" Hypothesis is Conclusively Dispelled: Officer Melano Contemporaneously Identifies the Cup as Urine

28. Between timestamps 00:58:49 and 00:59:07, Officer Melano reaches into the vehicle, seizes the cup that had been visible from outside, smells it, and identifies its contents on the recording. His exact words, captured on CHP audio:

Melano: "Is it water? No this is piss. This is pee."

Plaintiff: "I don't know what that is."

Melano: "I'm telling you it's piss. It smells like piss."

29. Those statements are unambiguous. The single articulable basis for the officers' criminal investigation -- Officer Melano's pre-contact "I think it's booze" guess -- had, by his own contemporaneous words captured on his own recording, been conclusively dispelled. Whatever suspicion the cup had generated ceased to exist the moment Officer Melano identified its contents as urine and stated so aloud to his partner.

30. Under the Fourth Amendment, once the sole articulable basis for a detention is dispelled, the detention must terminate. See Rodriguez v. United States, 575 U.S. 348, 355 (2015) (mission of a stop controls its lawful duration); Illinois v. Caballes, 543 U.S. 405, 407 (2005). At timestamp 00:59:07, the mission of Defendants' encounter with Plaintiff was over -- there was no ongoing crime, there was no evidence of intoxication, there was only a fatigued commercial driver, a rental car, and an empty urine cup. Defendants chose to continue anyway.

F. Prolonged Detention, Coerced FSTs on Uneven Ground, and Officer Melano's Own Acknowledgment of Unreliability

31. Instead of terminating the encounter, Defendants ordered Plaintiff out of the vehicle. They put him through a series of field sobriety exercises on the shoulder of an active interstate highway -- a location Officer Melano himself acknowledged on the recording was not suitable for reliable FST administration, causing him to decline to administer certain balance-dependent exercises due to the uneven ground.

32. Throughout the encounter, dashcam audio captures Plaintiff speaking coherently and

articulately. Plaintiff correctly identifies his location as Livermore, reads distant highway signage, discusses the mechanics of the Tesla rental (including alternator design), explains his CDL fatigue protocol, and spells his surname on request without difficulty. There is no audible slur. There is no confusion. There is no disorientation. There is no verbalized alcohol odor -- not from Officer Melano, and not from Officer Meza-Gonzalez -- at any point in more than two hours of continuous recording.

G. Officer Meza-Gonzalez Confirms PAS Is Voluntary; Plaintiff Refuses; Meza-Gonzalez Arrests Him Immediately

33. At timestamp 01:10:54, Officer Meza-Gonzalez advises Plaintiff on the recording that the preliminary alcohol screening ("PAS") test is voluntary: "You're not required to do this." That advisement is legally accurate. Under California Vehicle Code section 23612(i), a PAS test is a preliminary investigative tool, not a mandatory chemical test, and a driver not on DUI probation may lawfully decline it without any statutory consequence.

34. Plaintiff exercised his statutory right and declined the PAS test.

35. At timestamp 01:11:15 through 01:11:33, and immediately upon Plaintiff's exercise of his statutory right to refuse the voluntary PAS test, Officer Meza-Gonzalez placed Plaintiff under arrest. The temporal proximity is captured on the recording: refusal, then arrest, in the span of eighteen seconds.

36. The arrest was not preceded by any newly discovered probable cause. Nothing changed between the moments before Plaintiff refused and the moments after. The trigger for the arrest was the refusal itself. That is retaliatory arrest, in real time, on CHP's own recording.

H. The Sworn DS-367 and Arrest-Investigation Report:

Four Material Fabrications, Each Contradicted by CHP's Own Dashcam

37. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of perjury, and submitted to DMV, to the magistrate reviewing the blood-draw warrant application, and to the Alameda County District Attorney: (a) a DS-367 Age 21 and Older Officer's Statement (California Vehicle Code sections 13353, 13353.1, 13353.2 & 13389); and (b) CHP Arrest-Investigation Report Case No. RJ68845. Each document was signed by Meza-Gonzalez in his capacity as arresting officer. Officer Melano contributed to and adopted the observations reflected in those documents.

38. Each document contains at least four material representations that are conclusively disproven by the dashcam recording in CHP's own custody:

a. FABRICATION #1 -- "Strong distinct odor of an alcoholic beverage." The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff's breath and person. Neither Meza-Gonzalez nor Melano ever verbalizes any observation of an alcohol odor at any point in the two-hour recording. Officers routinely narrate significant observations to each other on the dashcam -- Melano narrates his "I think it's booze" guess (00:56:09), his "it's a rental" categorization (00:55:53), and his "this is piss" identification (00:58:49-00:59:07). At no point does either officer narrate any observation of an alcohol odor emanating from Plaintiff. The claim is fabricated.

b. FABRICATION #2 -- "Slurred" speech. The DS-367 and arrest report characterize Plaintiff's speech as "slurred." The dashcam records Plaintiff, in extended coherent conversation, spelling his last name letter-by-letter on request, discussing the alternator behavior of the rental Tesla, and explaining his CDL fatigue protocols in fluent English.

The characterization of that speech as "slurred" is fabricated.

c. FABRICATION #3 -- Plaintiff was "very confused and disoriented." The arrest report states that Plaintiff "seemed very confused and disoriented." The dashcam records Plaintiff correctly identifying his location (Livermore), reading distant highway signs, and orienting himself to the encounter without difficulty. The characterization is fabricated.

d. FABRICATION #4 -- "Beverage Present: Yes." The DS-367 contains a checkbox entry for "Beverage Present: Yes," indicating an alcoholic beverage was found associated with Plaintiff or his vehicle. The only liquid the officers found and discussed on the recording was, in Officer Melano's own words, "piss" -- urine, not a beverage. The checkbox entry is fabricated.

39. The arrest report also materially omits: (a) that the suspected alcohol in the cup was contemporaneously confirmed to be urine; (b) that Officer Melano himself declined to administer certain FSTs due to uneven ground; (c) that Officer Meza-Gonzalez expressly advised Plaintiff the PAS test was voluntary; (d) that the arrest was effected immediately upon Plaintiff's exercise of his statutory right to refuse the voluntary PAS; and (e) that Plaintiff had not been observed driving or in volitional control of the vehicle. These omissions are as material as the affirmative fabrications: they concealed from the reviewing magistrate the exculpatory facts on the officers' own recording that would have precluded a finding of probable cause.

40. The fabrications and omissions are not attributable to differences of professional interpretation. The dashcam is either audible or it is not; a slur is either present in the recorded audio or it is not; an alcohol odor is either narrated by an officer to his partner or it is not. On this record, the fabrications are objectively provable against the recording.

I. The Blood-Draw Warrant Was Procured By Judicial Deception; The Forced Extraction at Dublin CHP

41. Based on the false statements and misleading omissions in the DS-367 and arrest-investigation report, a magistrate authorized a search warrant permitting the involuntary extraction of Plaintiff's blood. Defendant Meza-Gonzalez, or a fellow CHP officer relying on his sworn statements, then transported Plaintiff to the CHP Dublin Area office and caused a blood sample to be forcibly drawn from Plaintiff's body pursuant to that warrant.

42. The affidavit supporting the blood warrant, stripped of the four fabrications identified in paragraph 38 above and supplemented with the omitted facts identified in paragraph 39, would not have supported probable cause. Without the false alcohol odor, without the false "slurred speech," without the false "confused and disoriented" characterization, and without the false "beverage present" checkbox, the affidavit would have reflected only: (i) a commercial driver lawfully parked on the shoulder; (ii) an officer's ex ante guess that a visible cup contained booze; (iii) that same officer's contemporaneous identification of the cup's contents as urine; (iv) coherent, oriented conversation; and (v) refusal of a voluntary test. Those facts do not add up to probable cause under any Fourth Amendment standard.

43. This is a paradigmatic Franks/Chism claim. See Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011) (civil analog: (1) deliberate or reckless falsehoods or omissions material to probable cause; (2) affidavit stripped of falsehoods and supplemented with omitted material facts would not support probable cause). Both elements are met.

J. Booking, Extended Detention at Santa Rita Jail,
Parole Hold Predicated on the Fabricated Report

44. Following the blood extraction, Plaintiff was transported to and booked into Santa Rita Jail in Dublin, California. On the strength of the fabricated arrest report, a parole hold was placed against Plaintiff -- extending his custodial confinement beyond the initial arrest and depriving him of liberty for additional days. The parole hold, like the blood warrant, was procured by the fabricated report.

K. CHP's Own Formal Concession: The November 5, 2024
Penal Code Section 851.6 Detention Certificate

45. On November 5, 2024 -- four days after the arrest -- the Dublin CHP issued a formal Detention Certificate referencing CHP Case No. RJ68845. The Certificate is signed by the releasing officer (Badge #022511) and states, in mandatory statutory language, that Plaintiff's taking into custody "was a detention only, not an arrest," and that Plaintiff was released pursuant to California Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint."

46. The statutory consequences of a Penal Code section 849(b)(1) release are non-discretionary. Penal Code section 849(c) provides: "Thereafter, the arrest shall not be deemed an arrest, but a detention only." Penal Code section 849.5 provides identically for cases in which no accusatory pleading is filed. Penal Code section 851.6(a) mandates issuance of a certificate "describing the action as a detention."

47. CHP's issuance of this Detention Certificate constitutes a formal, contemporaneous admission by the arresting agency itself that the arrest lacked probable cause and was unlawful from its inception. It is not an inference. It is CHP's own written concession, drafted by CHP,

signed by a CHP officer, on official CHP letterhead, referencing the same case number as the fabricated arrest report.

L. The Alameda County District Attorney's Declination:
The Prosecutorial Authority Also Rejected the Arrest

48. CHP recommended charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The Alameda County District Attorney reviewed the referral and declined to file any accusatory pleading of any kind against Plaintiff. No criminal case was ever initiated arising from the November 1, 2024 incident.

49. Both the arresting agency (CHP) and the prosecuting authority (the Alameda County District Attorney) have therefore formally rejected the arrest as lacking any evidentiary basis. Their formal, contemporaneous positions align: there were insufficient grounds to prosecute Plaintiff for anything arising from November 1, 2024.

M. Judge Krishnan's June 29, 2026 Screening Order
in the Related Serrato Action; Alias Relationship

50. On June 17, 2026, Plaintiff filed a related civil-rights complaint in this District against CHP Dublin Area Commander G. Serrato, arising from Serrato's April 20, 2026 denial of Plaintiff's request for a U Visa certification -- a denial that was itself predicated on Serrato's refusal to engage with the same dashcam evidence and Penal Code section 851.6 Detention Certificate at issue here. That action is styled Newanforbi v. Serrato, N.D. Cal. Case No. 4:26-cv-05953-ASK, assigned to United States Magistrate Judge Ambadas S. Krishnan (with plaintiff consent), Oakland Division.

51. ALIAS RELATIONSHIP. For clarity of the record, Plaintiff has, in prior court and

administrative proceedings arising out of the November 1, 2024 incident, appeared under the prior name variant "Brendan Ngehsi Newanforbi." That is the caption under which the Serrato action referenced in paragraph 50 was filed, and the caption used in Plaintiff's DMV and other administrative proceedings. "Brendan Ngehsi Newanforbi" and "Brendan Ngwa Nforbi" refer to the same individual -- the Plaintiff in this action -- and the change reflects Plaintiff's own subsequent preference to appear under "Brendan Ngwa Nforbi." Except where quoting from a prior filing, order, or record, this Complaint uses the name "Brendan Ngwa Nforbi" throughout. This alias note is provided to prevent any doubt about the identity of the Plaintiff and the connection between this action and the Serrato action; it is not intended to expand the scope of the pleadings in this case.

52. On June 29, 2026, Judge Krishnan (a) granted Plaintiff's application to proceed in forma pauperis, (b) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (c) concluded that the operative complaint "is sufficient" to proceed past the section 1915 screening stage. The Court ordered the Clerk to issue summons and directed service of process by the United States Marshal.

53. A coordinate Article III judge in this District has therefore already concluded, on a substantially overlapping factual record -- including the same dashcam contradictions of the same sworn CHP report and the same Penal Code section 851.6 Detention Certificate -- that Plaintiff's allegations state a plausible claim. That determination is not binding on this Court, but it is persuasive evidence that the pleading meets the threshold Federal Rule of Civil Procedure 12(b)(6) and Iqbal/Twombly plausibility standard as to the fabrication and false-arrest theories central to this action.

N. Consequential Damages: DMV Suspension, Loss of Commercial Driving Privileges, Loss of Income

54. Notwithstanding the section 851.6 Detention Certificate and the District Attorney's declination, the California Department of Motor Vehicles instituted administrative-per-se suspension proceedings against Plaintiff based on the DS-367 Officer's Statement Defendant Meza-Gonzalez had executed under penalty of perjury. Following an APS hearing on January 24, 2025, DMV suspended Plaintiff's driving privileges for one year, effective February 20, 2025 through February 19, 2026. Because Plaintiff holds a Class A Commercial Driver's License, that suspension was accompanied by a one-year commercial disqualification under Vehicle Code section 15300.

55. For the full year of the suspension, Plaintiff was barred from earning his living as a commercial truck driver. Plaintiff typically works 11.5-hour shifts, five days per week, in the commercial trucking sector. The loss of earnings during the suspension period is substantial, and the disqualification event on his commercial driving record continues to inflict career harm.

56. Plaintiff has also suffered, and continues to suffer: (a) loss of liberty from unlawful detention and confinement; (b) physical pain and mental suffering from handcuffing, restraint, and forced blood extraction; (c) severe emotional distress, including anxiety, humiliation, sleep disturbance, and continuing dignitary injury from having been branded a drunk driver by the fabricated sworn statements of state peace officers; (d) reputational harm and damage to professional standing; (e) attorneys' fees and costs incurred; (f) vehicle towing and impound fees; and (g) other economic losses to be proven at trial. Without the fabricated DS-367, DMV would have lacked its statutory predicate under Vehicle Code section 13353 and could not have sustained the suspension; the DMV disqualification is a direct and foreseeable consequence of Defendant Meza-Gonzalez's execution of the fabricated statement under penalty of perjury.

FIRST CAUSE OF ACTION

Fourth Amendment -- Unlawful Warrantless Entry

(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

57. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

58. The Fourth Amendment to the United States Constitution, as applied to the states through the Fourteenth Amendment, guarantees "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures." U.S. Const. amend. IV. A warrantless entry into a constitutionally protected area is presumptively unreasonable and violates the Fourth Amendment absent consent or a recognized exception. Payton v. New York, 445 U.S. 573, 585-90 (1980); Kentucky v. King, 563 U.S. 452, 459 (2011).

59. The interior of a passenger automobile, and the closed compartments and containers within it, are constitutionally protected areas within the meaning of the Fourth Amendment. See Collins v. Virginia, 584 U.S. 586, 592-93 (2018); California v. Carney, 471 U.S. 386, 390-93 (1985); New York v. Class, 475 U.S. 106, 114-15 (1986).

60. At timestamp 00:56:43 on the dashcam recording, Defendant Melano opened the locked front passenger-side door of Plaintiff's vehicle -- physically entering a constitutionally protected area -- without Plaintiff's consent, without a warrant, and without any exigent circumstance recognized under Fourth Amendment jurisprudence. Plaintiff was, at that moment, asleep. No medical emergency was observable. No crime was being committed. No fire, no destruction of evidence, no hot pursuit was underway. The automobile exception did not apply, because it did not authorize entry (as opposed to search of a lawfully accessible area) and because no probable cause independent of Melano's pre-contact "I think it's booze" guess existed. See

Collins, 584 U.S. at 592-93.

61. Even if a bona-fide community caretaking rationale had been in play, the community caretaking exception does not authorize warrantless entry of a private vehicle absent an imminent, articulable threat to public safety not present here. See Caniglia v. Strom, 593 U.S. 194, 197-99 (2021) (community caretaking is not a standalone doctrine authorizing warrantless entry). Defendants' unilateral opening of the door was investigative, not caretaking -- as their own contemporaneous words on the recording ("It's a rental," "It wasn't here earlier," "I think it's booze") establish.

62. Defendant Melano's conduct was intentional and objectively unreasonable. As a direct and proximate result of Defendant Melano's violation of the Fourth Amendment, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

SECOND CAUSE OF ACTION

Fourth Amendment -- Unlawful Search

(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

63. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

64. The Fourth Amendment prohibits unreasonable searches. A warrantless search of a lawfully parked passenger vehicle is unreasonable absent consent, exigent circumstances, or the automobile exception grounded in independent probable cause. See Arizona v. Gant, 556 U.S. 332, 343-44 (2009); California v. Acevedo, 500 U.S. 565, 580 (1991).

65. Following Defendant Melano's warrantless entry, both Defendants conducted a further

search of Plaintiff's vehicle -- including the interior cabin, the center console, and closed containers therein. That search was without a warrant, without consent, and without exigent circumstances. Any theoretical probable cause based on Officer Melano's pre-contact "I think it's booze" guess dissipated the moment Melano identified the cup's contents as urine on the recording (timestamps 00:58:49-00:59:07). The search continued after that dissipation. Continuing a search after the sole articulable basis has been dispelled is per se unreasonable. Rodriguez v. United States, 575 U.S. 348, 355 (2015).

66. To the extent any inventory or other administrative rationale is claimed post hoc, no lawful inventory search was conducted in accordance with standardized CHP protocols, no lawful arrest predicated the search, and no such rationale can be established retroactively. See Florida v. Wells, 495 U.S. 1, 4-5 (1990).

67. Defendants' conduct was intentional and objectively unreasonable. As a direct and proximate result of Defendants' violation of the Fourth Amendment, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

THIRD CAUSE OF ACTION

Fourth Amendment -- Unlawful Arrest and Detention
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

68. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

69. The Fourth Amendment requires probable cause for a warrantless arrest. Probable cause exists when "the facts and circumstances within the officer's knowledge are sufficient [for] a prudent person to believe that the suspect has committed" a crime. Crowe v. County of San

Diego, 608 F.3d 406, 432 (9th Cir. 2010). Probable cause must exist at the time of the arrest and cannot be manufactured after the fact through fabricated observations. Devenpeck v. Alford, 543 U.S. 146, 152 (2004).

70. At the moment Officer Meza-Gonzalez arrested Plaintiff -- at dashcam timestamps 01:11:15-01:11:33, immediately following Plaintiff's exercise of his statutory right to refuse a voluntary PAS test -- Defendants had not observed Plaintiff driving. They had not observed Plaintiff exhibiting any objective sign of impairment on the two hours of dashcam recording. They had identified the only suspected "beverage" in the vehicle as urine. Plaintiff had passed all administered FSTs, or at least Officer Melano had refused to administer certain FSTs, acknowledging the environment made reliable administration impossible. And Plaintiff had lawfully declined the voluntary PAS Officer Meza-Gonzalez himself had just told him he was "not required to do."

71. On those facts, no reasonable officer could have believed there was probable cause to arrest Plaintiff for violation of any Vehicle Code section prohibiting driving under the influence, driving under the influence with a measurable BAC, or operating a commercial vehicle with alcohol present -- and, indeed, no reasonable officer could have believed there was probable cause to arrest Plaintiff for any offense whatsoever.

72. CHP's issuance of the Penal Code section 851.6 Detention Certificate four days later is a formal contemporaneous concession by the arresting agency itself that the arrest lacked "sufficient grounds for making a criminal complaint." Combined with the Alameda County District Attorney's declination to file, the record contains formal admissions from both the arresting agency and the prosecuting authority that there was no probable cause.

73. Defendants' arrest of Plaintiff was intentional and objectively unreasonable. As a direct and proximate result, Plaintiff was subjected to hours-long custody at the roadside, at the

Dublin CHP office, and at Santa Rita Jail, and has suffered the damages alleged in paragraphs 54-56 above.

FOURTH CAUSE OF ACTION

Fourth Amendment -- Judicial Deception and Unlawful Bodily Intrusion Under a Fabricated Warrant (42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

74. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

75. It is clearly established that a police officer violates the Fourth Amendment by knowingly, deliberately, or recklessly submitting a warrant affidavit containing false statements or material omissions if the affidavit purged of the falsehoods, and supplemented with the omitted material facts, would not support probable cause. Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011); Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

76. Defendant Meza-Gonzalez executed under penalty of perjury a DS-367 Officer's Statement and CHP Arrest-Investigation Report containing the fabrications and material omissions identified in paragraphs 37-40 above. Those documents formed the evidentiary basis for the warrant authorizing the involuntary extraction of Plaintiff's blood at the CHP Dublin Area office. In submitting those documents in support of the warrant, Meza-Gonzalez presented to the reviewing magistrate a materially false and misleading picture of the encounter.

77. Purged of the four fabrications (paragraph 38) and supplemented with the omitted material facts (paragraph 39), the warrant affidavit would not have supported probable cause to

believe Plaintiff was driving or had driven under the influence, and it would not have supported authorization of a bodily intrusion of the magnitude of a compelled blood draw. See Missouri v. McNeely, 569 U.S. 141, 148 (2013) (compelled blood draw is a Fourth Amendment search of significant magnitude).

78. Defendant Meza-Gonzalez's conduct was deliberate. Alternatively, at a minimum, it was reckless: an arresting officer executing a sworn statement in support of a warrant, with contemporaneous audio-video of the same encounter recorded and stored on his own patrol vehicle's equipment, acts with reckless disregard for truth when he sworn-attests to observations that his own recording either omits or affirmatively contradicts.

79. As a direct and proximate result, Plaintiff suffered a compelled bodily intrusion -- a forced needle stick and blood extraction -- without probable cause, and has suffered the further damages alleged in paragraphs 54-56 above.

FIFTH CAUSE OF ACTION

Fourteenth Amendment -- Deliberate Fabrication of Evidence
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

80. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

81. The Fourteenth Amendment's Due Process Clause prohibits state actors from deliberately fabricating evidence and using it against a person to bring about deprivations of liberty or property. It is clearly established in the Ninth Circuit that a state actor violates due process by deliberately fabricating evidence or continuing an investigation despite pressure to obtain evidence against a person known to be innocent. Devereaux v. Abbey, 263 F.3d 1070,

1076 (9th Cir. 2001) (en banc). It is also clearly established that qualified immunity is not available to state actors who deliberately fabricate evidence. Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010).

82. Defendant Meza-Gonzalez deliberately fabricated evidence when he executed under penalty of perjury the DS-367 Officer's Statement and CHP Arrest-Investigation Report containing the four material fabrications identified in paragraph 38 above -- fabrications that are conclusively disproven by CHP's own dashcam recording of the same encounter, which was in Meza-Gonzalez's own agency's exclusive custody at all relevant times.

83. The fabricated evidence was used against Plaintiff to bring about multiple deprivations of liberty and property, including: (a) authorization of the warrant compelling involuntary extraction of his blood; (b) his booking and extended confinement at Santa Rita Jail (including under a parole hold predicated on the fabricated report); (c) the DMV administrative-per-se suspension of his California driver's license, and the commercial disqualification of his Class A CDL, for one full year; and (d) the referral for criminal prosecution (which the District Attorney declined only after the Detention Certificate had already issued).

84. In the alternative, Defendant Meza-Gonzalez continued to press the criminal-investigative theory that Plaintiff had been driving under the influence despite pressure and evidence that no such offense had occurred -- specifically, Officer Melano's contemporaneous identification of the cup as urine, Plaintiff's coherent and articulate demeanor throughout the encounter, Plaintiff's refusal of a voluntary test, and the absence on the recording of any verbalized observation of an alcohol odor. Meza-Gonzalez used investigative techniques (a coerced arrest immediately upon lawful PAS refusal, followed by execution of a sworn statement embellished with fabricated "objective signs") that he knew or should have known would yield false information. Devereaux, 263 F.3d at 1076.

85. As a direct and proximate result of the Fourteenth Amendment violation, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

SIXTH CAUSE OF ACTION

First Amendment -- Retaliation for Exercise of Statutory Right to Refuse a Voluntary Preliminary Alcohol Screening Test (42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

86. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

87. To state a First Amendment retaliation claim under section 1983, a plaintiff must plead that (i) he engaged in constitutionally protected activity; (ii) the defendant took an adverse action against him; and (iii) the protected activity was a substantial or motivating factor for the adverse action. See Nieves v. Bartlett, 587 U.S. 391, 398-99 (2019); Ballentine v. Tucker, 28 F.4th 54, 62 (9th Cir. 2022).

88. The exercise of a statutory right to refuse a search or investigative procedure that is expressly non-mandatory constitutes constitutionally protected conduct. See Camara v. Municipal Court, 387 U.S. 523, 528-33 (1967). Plaintiff's refusal of the PAS test -- a test that Officer Meza-Gonzalez had just expressly advised was voluntary ("You're not required to do this" at dashcam timestamp 01:10:54) -- was such an exercise, and refusal was itself a form of expressive conduct communicating Plaintiff's non-consent to a discretionary investigative procedure.

89. Within eighteen seconds of that refusal (dashcam timestamps 01:11:15-01:11:33), Officer Meza-Gonzalez arrested Plaintiff. That temporal proximity, together with the absence on the recording of any newly discovered probable cause between the moment of refusal and the

moment of arrest, establishes that the arrest was in retaliation for Plaintiff's exercise of his statutory right to refuse the voluntary PAS.

90. Nieves v. Bartlett does not bar this claim. Under Nieves, a probable-cause defense does not defeat a retaliatory-arrest claim where the plaintiff shows he was arrested when otherwise similarly situated individuals not engaged in the same sort of protected speech had not been. 587 U.S. at 407. Here, Plaintiff had refused an expressly voluntary investigative procedure -- a category of protected conduct for which arrest is patently unlawful, and for which similarly situated non-refusing drivers are not arrested. In the alternative, and as pled in the Third Cause of Action above, there was no probable cause for the arrest at all.

91. As a direct and proximate result of the retaliatory arrest, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

QUALIFIED IMMUNITY IS NOT AVAILABLE

92. To the extent Defendants assert qualified immunity, the defense fails. Qualified immunity shields government officials only where their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known. Harlow v. Fitzgerald, 457 U.S. 800, 818 (1982); Pearson v. Callahan, 555 U.S. 223, 231 (2009). Each right alleged to have been violated in this Complaint was clearly established, at the level of specificity the Supreme Court has required, well before November 1, 2024.

93. The right to be free from warrantless entry into a private vehicle absent consent, exigency, or an applicable exception was clearly established by Payton v. New York, 445 U.S. 573 (1980); Collins v. Virginia, 584 U.S. 586 (2018); and Caniglia v. Strom, 593 U.S. 194 (2021).

94. The right to be free from a prolonged detention after the sole articulable basis for the encounter had been dispelled was clearly established by Rodriguez v. United States, 575 U.S. 348 (2015), and Illinois v. Caballes, 543 U.S. 405 (2005).

95. The right to be free from arrest without probable cause was clearly established more than half a century before this incident. Beck v. Ohio, 379 U.S. 89 (1964); Dunaway v. New York, 442 U.S. 200, 208-16 (1979); Devenpeck v. Alford, 543 U.S. 146 (2004). And it is beyond debate that a probable-cause determination cannot rest on facts the officer himself fabricated.

96. The right to be free from a warrant obtained through judicial deception -- i.e., the deliberate or reckless inclusion of false statements or the material omission of exculpatory facts in a warrant affidavit -- was clearly established by Franks v. Delaware, 438 U.S. 154 (1978), and, in the Ninth Circuit, by Chism v. Washington State, 661 F.3d 380 (9th Cir. 2011), and Galbraith v. County of Santa Clara, 307 F.3d 1119 (9th Cir. 2002).

97. The right to be free from deliberately fabricated evidence -- and the unavailability of qualified immunity to officers who deliberately fabricate evidence -- is clearly established by Devereaux v. Abbey, 263 F.3d 1070 (9th Cir. 2001) (en banc), and Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010). No reasonable officer could have believed, on November 1, 2024, that it was lawful to swear to observations that his own agency's contemporaneous audio-video recording either omitted or contradicted.

98. The right to be free from retaliatory arrest for engaging in constitutionally protected conduct was clearly established by Nieves v. Bartlett, 587 U.S. 391 (2019), and Ballentine v. Tucker, 28 F.4th 54 (9th Cir. 2022). No reasonable officer could have believed, on November 1, 2024, that a driver could lawfully be arrested for exercising a statutory right to refuse a voluntary test the officer himself had just described as non-mandatory.

99. Even setting aside directly on-point authority, an officer can be on notice that his conduct violates the Constitution even in novel factual circumstances, where the violation is obvious. Hope v. Pelzer, 536 U.S. 730, 741 (2002). Fabricating sworn observations to obtain a warrant is not a novel gray area. It is at the core of the constitutional violation the Fourth and Fourteenth Amendments were adopted to prevent.

100. This District's June 29, 2026 screening order in the Serrato action referenced in paragraphs 50 and 52 above -- finding a substantially overlapping factual record sufficient to state plausible constitutional claims -- confirms that the allegations in this Complaint clear the threshold that any qualified-immunity analysis would apply on a motion to dismiss.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and each of them, as follows:

A. For general and compensatory damages against each Defendant in his individual capacity, in an amount according to proof at trial, for the injuries alleged herein, including loss of liberty, physical pain and suffering, severe and continuing emotional distress, humiliation, reputational injury, and dignitary harm;

B. For special damages against each Defendant in his individual capacity, in an amount according to proof at trial, including lost wages and lost earning capacity during the one-year commercial driving disqualification (February 20, 2025 through February 19, 2026), continuing career impact from the DMV disqualification event, out-of-pocket expenses arising from the incident, and other economic losses;

C. For punitive damages against each Defendant in his individual capacity, in an amount sufficient to punish and deter, based on Defendants' willful, malicious, and reckless conduct -- including the pre-contact criminal-investigative hypothesis, the persistence of the investigation after the sole articulable basis had been dispelled, the retaliatory arrest for exercise of a statutory right, and the execution under penalty of perjury of a sworn statement embellished with fabrications contradicted by their own agency's contemporaneous audio-video recording;

D. For reasonable attorneys' fees and costs pursuant to 42 U.S.C. section 1988, together with such other and further fees, costs, and expenses of suit as are permitted by law;

E. For pre- and post-judgment interest to the fullest extent permitted by law; and

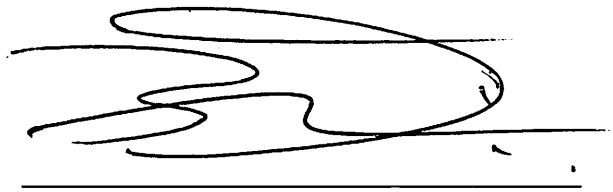
F. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

U.S. District Court

California Northern - San Jose

Receipt Date: Aug 10, 2026 9:28AM

Brenan Ngwa Nforbi
1455 Cat Tail Drive
Stockton, CA 95204

Rcpt. No: 511019861 Trans. Date: Aug 10, 2026 9:28AM Cashier ID: #CHHo (7361)

CD	Purpose	Case/Party/Defendant	Qty	Price	Amt
200	Civil Filing Fee- Non-Prisoner		1	405.00	405.00

CD	Tender			Amt
MO	Money Order	#55300689018	08/7/2026	$405.00

Total Due Prior to Payment:	$405.00
Total Tendered:	$405.00
Total Cash Received:	$0.00

Comments: 3:26-cv-08271-PHK

Only when the bank clears the check, money order, or verifies credit of funds, is the fee or debt officially paid or discharged. A $53 fee will be charged for a returned check.

JS-CAND 44 (Rev. 04-2025)

CIVIL COVER SHEET - for people without lawyers only

See Civil Local Rule 3-2 (amended April 28, 2025), which requires the filing of a civil cover sheet only by those unrepresented by counsel.

C 26 08271 PHK

I. PLAINTIFF(S)

Ngwa Nforbi, Brendan

County of Residence of First Listed Plaintiff:
Leave blank in cases where United States is plaintiff.

Attorney or Pro Se Litigant Information *(Firm Name, Address, and Telephone Number)*
Brendan Ngwa Nforbi, Pro Se (In Propria Persona), 1455 Cat Tail Drive, Stockton, CA 95206, (209) 89[illegible]4, bnn.cdl@gmail.com

DEFENDANT(S)

Santiago Mota-Gonzalez (CHP #0[illegible]795) and Jose Milano (CHP #0[illegible]054), each in his individual capacity, and DOES 1-10

County of Residence of First Listed Defendant:
Use ONLY in cases where United States is plaintiff.

RECEIVED
AUG 10 2026
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

Defendant's Attorney's Name and Contact Information *(if known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ U.S. Government Plaintiff
- ☒ Federal Question *(U.S. Government Not a Party)*
- ☐ U.S. Government Defendant
- ☐ Diversity

III. CAUSE OF ACTION

Cite the U.S. Statute under which you are filing *(Do not cite jurisdictional statutes unless diversity.)*
42 USC § 1983 (jurisdiction: 28 U.S.C. §§ 1331, 1343(a)(3), (a)(4); U.S. Const. amends. I, IV, XIV

Brief description of case: warrantless vehicle entry, unlawful probable cause, false imprisonment

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury -Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury – Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

CIVIL RIGHTS
- ☒ 440 Other Civil Rights
- ☐ 441 Voting
- ☐ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities–Employment
- ☐ 446 Amer. w/Disabilities–Other
- ☐ 448 Education

5

PRISONER PETITIONS

HABEAS CORPUS
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

OTHER
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee–Conditions of Confinement

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC § 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC § 158
- ☐ 423 Withdrawal 28 USC § 157

PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent–Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS–Third Party 26 U.S.C. § 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC § 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced & Corrupt Organizations
- ☐ 480 Consumer Credit
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

V. ORIGIN *(Place an "X" in One Box Only)*

☒ Original Proceeding ☐ Removed from State Court ☐ Remanded from Appellate Court ☐ Reinstated or Reopened ☐ Transferred from Another District ☐ Multidistrict Litigation–Transfer ☐ Multidistrict Litigation–Direct File

VI. FOR DIVERSITY CASES ONLY: CITIZENSHIP OF PRINCIPAL PARTIES

(Place an "X" in One Box for Plaintiff and One Box for Defendant)

Plaintiff	Defendant	
☐	☐	Citizen of California
☐	☐	Citizen of Another State
☐	☐	Citizen or Subject of a Foreign Country
☐	☐	Incorporated or Principal Place of Business In California
☐	☐	Incorporated and Principal Place of Business In Another State
☐	☐	Foreign Nation

VII. REQUESTED IN COMPLAINT

- ☒ Check if the complaint contains a **jury demand.**
- ☒ Check if the complaint contains a **monetary demand.** Amount: According to Proof
- ☐ Check if the complaint seeks **class action** status under Fed. R. Civ. P. 23.
- ☐ Check if the complaint seeks a **nationwide injunction** or Administrative Procedure Act vacatur.

VIII. RELATED CASE(S) OR MDL CASE

Provide case name(s), number(s), and presiding judge(s).

Ngwa Nforbi v. Serrato, 4:26-cv-05953-ASK, Hon. Kristman (Oakland)

IX. DIVISIONAL ASSIGNMENT pursuant to Civil Local Rule 3-2

(Place an "X" in One Box Only) ☐ SAN FRANCISCO/OAKLAND ☐ SAN JOSE ☐ EUREKA-MCKINLEYVILLE

DATE 08/07/2026 SIGNATURE OF ATTORNEY OR PRO SE LITIGANT

BRENDAN NGWA NFORBI
Plaintiff, In Pro Per
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E-mail: bnn.cdl@gmail.com

FILED
AUG 14 2026
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI,

Plaintiff,

v.

SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive,

Defendants.

Case No. 3:26-cv-08271-PHK
Hon. Peter H. Kang

FIRST AMENDED COMPLAINT FOR DAMAGES

(42 U.S.C. § 1983)

(1) 4th Amend. -- Judicial Deception;
(2) 14th Amend. -- Fabrication of Evidence;
(3) 4th Amend. -- Unlawful Arrest;
(4) 4th Amend. -- Unlawful Entry;
(5) 4th Amend. -- Unlawful Search;
(6) 1st Amend. -- Retaliation.

[DEMAND FOR JURY TRIAL]

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, files this First Amended Complaint against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising from an arrest on November 1, 2024, on the shoulder of Interstate 580 East in Livermore, Alameda County, California. Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a Class A

Commercial Driver's License (No. F7953179), was parked and asleep in his vehicle when California Highway Patrol Officers Santiago Meza-Gonzalez and Jose Melano approached. Over the course of two hours -- captured in their entirety on the officers' own dashcam recording (CHP Case No. RJ68845) -- the officers opened the vehicle without consent or warrant, identified the only cup in the vehicle as containing urine, continued the investigation after the basis for their initial suspicion had dissipated, arrested Plaintiff within eighteen seconds of his exercise of the statutory right to decline a voluntary preliminary alcohol screening test, and then generated sworn statements containing material representations that are contradicted by the same recording in the CHP's own custody.

2. After the arrest, Officer Meza-Gonzalez executed under penalty of perjury a DS-367 Officer's Statement and a CHP Arrest-Investigation Report, both of which were used to obtain a blood-draw warrant from a magistrate, to initiate a one-year administrative suspension of Plaintiff's commercial driving privileges, and to refer criminal charges to the Alameda County District Attorney. The DS-367 and arrest report contain at least four representations that are materially contradicted by the dashcam recording: a claimed "strong distinct odor of an alcoholic beverage" that neither officer ever verbalizes on the recording; a characterization of Plaintiff's speech as "slurred" when the recording captures extended coherent conversation; a claim that Plaintiff was "very confused and disoriented" when the recording shows him correctly identifying his location and reading distant signage; and a checked box for "Beverage Present: Yes" when the only liquid the officers found was, in Officer Melano's own contemporaneous words on the recording, "piss." Four days later, CHP itself issued a Penal Code section 851.6 Detention Certificate reclassifying the event as "a detention only, not an arrest" for "insufficient grounds." The Alameda County District Attorney declined to file any charges.

3. Plaintiff brings six claims against Defendants in their individual capacities: judicial deception in support of a blood-draw warrant; deliberate fabrication of evidence; unlawful arrest without probable cause; unlawful warrantless entry into a private vehicle; unlawful search; and

First Amendment retaliation for exercising the statutory right to refuse a voluntary preliminary alcohol screening test. Plaintiff seeks compensatory and punitive damages and reasonable attorney's fees under 42 U.S.C. section 1988.

JURISDICTION AND VENUE

4. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights). The claims arise under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

5. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2). All events giving rise to this action occurred in Livermore and Dublin, Alameda County, California, within this District.

6. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is appropriately assigned to the San Francisco Division or the Oakland Division.

PARTIES

7. Plaintiff BRENDAN NGWA NFORBI is a natural person and a resident of the County of San Joaquin, State of California. At all relevant times, he held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles.

8. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is a sworn peace officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

9. Defendant JOSE MELANO (CHP Badge #023054) is a sworn peace officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

10. The true names of Defendants DOES 1 through 10 are presently unknown. On information and belief, each participated in, approved, or acquiesced in the conduct alleged herein. Each is sued in his or her individual capacity. Plaintiff will seek leave to amend when their identities are ascertained.

FACTUAL ALLEGATIONS

A. Plaintiff Was Lawfully Parked and Asleep

11. On the evening of October 31, 2024, and into the early hours of November 1, 2024, Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580. Feeling fatigued, he exited active travel lanes and parked on the right shoulder just west of the Isabel Avenue exit in Livermore, Alameda County. He then rested in the driver's seat. He was not driving. No officer observed him in volitional movement of the vehicle.

12. Plaintiff is a professional commercial truck driver. Pulling off the road to rest when fatigued is consistent with federal Hours-of-Service principles and with CHP's own public safety guidance to drowsy motorists.

B. The Officers' Pre-Contact Hypothesis

13. At approximately 00:54:36, the CHP patrol vehicle's dashcam recording activated as it came to a stop behind Plaintiff's parked Tesla. The recording ran continuously through

approximately 01:57:10, capturing the entirety of the encounter.

14. At 00:55:53, before either officer had approached the vehicle, Officer Melano remarked on the recording: "It's a rental. Huh." At 00:56:05, both officers approached and peered through the windows with flashlights while Plaintiff remained asleep inside. At 00:56:07, Melano stated: "It wasn't here earlier when we passed by."

15. At 00:56:09 -- before either officer had spoken a word to Plaintiff, before Plaintiff was awake, and before any welfare observation had been made -- Officer Melano stated on the recording: "I think it's booze." That statement, directed at a cup visible through the vehicle window, was formed before any contact with Plaintiff and before any observation of his condition.

C. Warrantless Entry

16. At 00:56:43, Officer Melano opened the front passenger-side door of Plaintiff's vehicle. Plaintiff was still asleep. He had not consented to entry. No warrant had been obtained. No exigent circumstance -- no medical emergency, no ongoing crime, no fire, no destruction of evidence, no hot pursuit -- was present or articulated. No other basis for the entry was articulated on the recording.

D. The Cup Is Identified as Urine;
the Initial Suspicion Dissipates

17. Between 00:58:49 and 00:59:07, Officer Melano seized the cup from the vehicle interior, smelled it, and identified its contents on the recording:

Melano: "Is it water? No this is piss. This is pee."

Plaintiff: "I don't know what that is."

Melano: "I'm telling you it's piss. It smells like piss."

18. Officer Melano's own contemporaneous identification of the cup's contents as urine is inconsistent with his earlier hypothesis that the cup contained alcohol. Whatever investigative suspicion the cup had generated dissipated at the moment the officer handling it identified it as something other than an alcoholic beverage and said so aloud.

E. Continued Detention, Field Sobriety Exercises, and PAS Advisement

19. The officers did not terminate the encounter. They ordered Plaintiff out of the vehicle onto uneven ground and administered field sobriety exercises. Officer Melano acknowledged on the recording that the ground conditions were not suitable for reliable FST administration and declined to perform certain balance-dependent exercises for that reason.

20. Throughout the encounter, Plaintiff spoke coherently and articulately. The dashcam audio captures him spelling his surname on request, discussing the alternator design of the rental Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore. At no point in over two hours of continuous recording does either officer verbalize any observation of an alcohol odor emanating from Plaintiff.

21. At 01:10:54, Officer Meza-Gonzalez advised Plaintiff that the preliminary alcohol screening ("PAS") test was voluntary: "You're not required to do this." That advisement is legally accurate. Under California Vehicle Code section 23612(i), a PAS is a preliminary investigative tool, and a driver not on DUI probation may lawfully decline it.

22. At 01:11:03, Officer Meza-Gonzalez stated on the recording: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That statement, captured on the officers' own recording, expressly conditioned the arrest decision on whether Plaintiff consented to or refused the voluntary test.

F. PAS Refusal and Immediate Arrest

23. Plaintiff declined the PAS test.

24. At 01:11:15 through 01:11:33 -- eighteen seconds after the refusal -- Officer Meza-Gonzalez placed Plaintiff under arrest. No new observation or piece of evidence intervened between the refusal and the arrest. The temporal sequence is captured on the recording.

G. The DS-367 and Arrest Report:
Four Material Contradictions with the Dashcam

25. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of perjury, and submitted to DMV, to the reviewing magistrate, and to the Alameda County District Attorney: (a) a DS-367 Age 21 and Older Officer's Statement; and (b) a CHP Arrest-Investigation Report (Case No. RJ68845).

26. Each document contains representations that are materially contradicted by the dashcam recording:

(a) Odor. The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff. In over two hours of continuous dashcam audio, neither officer verbalizes any observation of an alcohol odor at any point. Officers

routinely narrate significant observations on dashcam -- Melano narrates his cup hypothesis (00:56:09), his urine identification (00:58:49-00:59:07), and vehicle details (00:55:53) -- but neither officer narrates detecting an alcohol odor.

(b) Speech. The DS-367 characterizes Plaintiff's speech as "slurred." The recording captures Plaintiff in extended coherent conversation, including spelling his surname letter-by-letter and discussing mechanical details of the rental vehicle.

(c) Orientation. The arrest report states Plaintiff "seemed very confused and disoriented." The recording captures Plaintiff correctly identifying his location as Livermore and reading distant highway signage.

(d) Beverage. The DS-367 contains a checked box for "Beverage Present: Yes." The only liquid the officers found and discussed on the recording was identified by Officer Melano as urine, not a beverage.

27. The arrest report also omits material facts: that the suspected alcohol in the cup was identified on the recording as urine; that Officer Melano declined to administer certain FSTs due to ground conditions; that Officer Meza-Gonzalez expressly advised Plaintiff the PAS was voluntary; and that no officer had observed Plaintiff driving or in volitional control of the vehicle.

28. Of the four contradictions, the "Beverage Present" entry is the most objectively verifiable: the officers' own contemporaneous words on their own recording identify the only liquid as urine, and the DS-367 checkbox characterizes it as a beverage. The odor, speech, and orientation entries are experiential observations that were not verbalized on the recording; Plaintiff alleges they are materially contradicted by the objective record, and their truth or falsity is a question the recording can help resolve.

H. The Blood-Draw Warrant and Forced Extraction

29. Based on the DS-367 and arrest report, a magistrate authorized a warrant for the involuntary extraction of Plaintiff's blood. Plaintiff was transported to the CHP Dublin Area office, where a blood sample was forcibly drawn pursuant to that warrant. A compelled blood draw is a significant bodily intrusion within the meaning of the Fourth Amendment. Missouri v. McNeely, 569 U.S. 141, 148 (2013).

30. If the four contradicted representations identified in paragraph 26 are set aside, and if the omitted facts identified in paragraph 27 are restored, the warrant application would have reflected: a commercial driver parked and asleep on a highway shoulder; a cup identified by the investigating officer as urine; coherent, oriented conversation; no verbalized alcohol odor; and refusal of a test the officer had just described as voluntary. Whether those facts, standing alone, would have supported probable cause for a blood-draw warrant is a question that should be resolved on a developed record, not on the pleadings.

I. Booking and Extended Detention

31. Following the blood extraction, Plaintiff was transported to and booked at Santa Rita Jail in Dublin, California. A parole hold was placed based on the arrest report, extending Plaintiff's custodial confinement beyond the initial arrest.

J. CHP's Subsequent Reclassification:
The Penal Code Section 851.6 Detention Certificate

32. On November 5, 2024, the Dublin CHP issued a Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Certificate states that Plaintiff's taking into custody "was a detention only, not an arrest" and that he was released

under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter is thereafter not deemed an arrest but a detention only.

33. The Detention Certificate is a subsequent official reclassification by the arresting agency itself. It does not, standing alone, establish that the arrest violated the Fourth Amendment at the moment it occurred. It does, however, constitute contemporaneous evidence from the agency best positioned to evaluate the encounter -- evidence consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

K. The District Attorney's Declination

34. CHP referred charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The District Attorney declined to file any accusatory pleading. No criminal case was initiated.

L. Alias Note, Related Actions, and Prior Proceedings

35. Plaintiff has appeared in prior court and administrative proceedings arising from this incident under the name variant "Brendan Ngehsi Newanforbi." That is the same individual as Plaintiff in this action. This Complaint uses "Brendan Ngwa Nforbi" throughout except where quoting from a prior record. In a related action in this District, N.D. Cal. Case No. 4:26-cv-05953-ASK, United States Magistrate Judge Ajay S. Krishnan screened a complaint resting on a substantially overlapping factual record and found it sufficient to proceed under 28 U.S.C. section 1915(e). A prior action arising from the same November 1, 2024 incident, filed in the Eastern District of California, has been voluntarily dismissed without prejudice. This action is not duplicative of any pending proceeding.

M. Damages

36. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered:

(a) Loss of liberty from custodial confinement at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail, including extended confinement under a parole hold predicated on the arrest report;

(b) A compelled blood extraction at the CHP Dublin Area office;

(c) Loss of employment and earning capacity as a Class A commercial driver. At the time of the November 1, 2024 incident, Plaintiff had just commenced a dedicated route assignment with Lily Transportation (Toyota Dedicated, San Ramon, California) through Centerline Drivers, a staffing company, at a regular rate of $33.35 per hour and a premium/overtime rate of $50.03 per hour, as reflected in the contemporaneous Centerline wage notice dated October 31, 2024. Using a conservative schedule of forty regular hours and twenty overtime hours per week -- consistent with dedicated regional truck driving work -- Plaintiff's lost earnings from November 1, 2024 through the filing of this Complaint (approximately 92 weeks) exceed $214,000. This figure does not include lost employment benefits, future impairment of earning capacity, or other consequential economic losses;

(d) A one-year administrative-per-se suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), with an accompanying one-year commercial disqualification, together with a three-year SR-22 financial-responsibility requirement (annual premiums of $281.28) with a maintenance period extending through approximately May 2029, and a $125.00 CDL reissue fee;

(e) Vehicle towing and impound fees; and

(f) Emotional distress, anxiety, humiliation, sleep disturbance, and reputational injury from having his professional reputation damaged by sworn statements that are materially contradicted by the officers' own contemporaneous recording.

37. The DS-367 was a material statutory and evidentiary basis for initiation and adjudication of the APS proceeding. Plaintiff alleges that the materially false representations in the DS-367 foreseeably caused or materially contributed to the resulting suspension of his commercial driving privileges. The wage loss is a direct and foreseeable consequence of that suspension. The total economic damages, including lost wages, benefits, and out-of-pocket expenses, exceed $250,000, excluding emotional distress and punitive damages to be proven at trial.

FIRST CAUSE OF ACTION

Fourth Amendment -- Judicial Deception and Unlawful Bodily Intrusion Under a Warrant Obtained Through Materially False or Misleading Statements
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

38. Plaintiff re-alleges paragraphs 1 through 37.

39. An officer violates the Fourth Amendment by submitting a warrant application containing statements that are deliberately or recklessly false, or that omit material facts, if the application -- stripped of the false statements and supplemented with the omitted facts -- would not support probable cause. Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011).

40. On information and belief, Defendant Meza-Gonzalez executed the DS-367 and arrest report under penalty of perjury and submitted them, or caused them to be submitted, to the reviewing magistrate as the evidentiary basis for the blood-draw warrant application. The challenged representations identified in paragraph 26 were material to the probable-cause determination. When those representations are set aside and the omitted facts identified in paragraph 27 are restored, the remaining application does not plausibly support probable cause to believe Plaintiff was driving under the influence. Benavidez v. County of San Diego, 993 F.3d 1134, 1146-47 (9th Cir. 2021) (applying Franks corrected-affidavit test).

41. Defendant Meza-Gonzalez acted with at least reckless disregard for the truth. An officer who executes a sworn statement while a contemporaneous recording of the same encounter -- stored on his own patrol vehicle -- contains information materially inconsistent with that sworn statement acts with reckless disregard, at minimum. The right to be free from a warrant obtained through materially false or misleading statements was clearly established before November 1, 2024. Franks, 438 U.S. at 155-56; Chism, 661 F.3d at 386; Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

42. As a direct and proximate result, Plaintiff suffered a compelled blood extraction without valid probable cause, and the further damages alleged in paragraphs 36-37.

SECOND CAUSE OF ACTION

Fourteenth Amendment -- Deliberate Fabrication of Evidence

(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

43. Plaintiff re-alleges paragraphs 1 through 37.

44. The Fourteenth Amendment prohibits state actors from deliberately fabricating evidence and using it to bring about deprivations of liberty or property. Devereaux v. Abbey, 263 F.3d 1070, 1076 (9th Cir. 2001) (en banc). Qualified immunity is not available to officers who deliberately fabricate evidence. Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010).

45. Defendant Meza-Gonzalez executed sworn statements containing the four materially contradicted representations identified in paragraph 26. Those statements were used to obtain the blood-draw warrant, to sustain custodial confinement (including under a parole hold), to initiate and sustain the DMV administrative-per-se suspension of Plaintiff's Class A CDL, and to refer charges to the District Attorney.

46. Defendant Meza-Gonzalez personally participated in the encounter the dashcam recorded. He personally heard Plaintiff's speech. He personally observed Plaintiff's demeanor and orientation. He was present when Officer Melano identified the cup's contents as urine. He personally administered the PAS advisement and effected the arrest. He then executed sworn statements containing representations materially inconsistent with what he had personally observed and what his own agency's recording captured. An officer who knowingly and deliberately includes materially false representations in sworn investigative documents violates the Fourteenth Amendment. Spencer v. Peters, 857 F.3d 789, 798 (9th Cir. 2017) (deliberate mischaracterization of evidence in investigative reports); Devereaux, 263 F.3d at 1076.

47. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 36-37.

THIRD CAUSE OF ACTION

Fourth Amendment -- Unlawful Arrest and Detention

(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

48. Plaintiff re-alleges paragraphs 1 through 37.

49. The Fourth Amendment requires probable cause for a warrantless arrest. Probable cause exists when the facts and circumstances known to the officer at the time are sufficient for a prudent person to believe that the suspect has committed a crime. Devenpeck v. Alford, 543 U.S. 146, 152 (2004).

50. At the moment of arrest (01:11:15-01:11:33), the facts known to the officers, as reflected on the recording, included: Plaintiff was parked and asleep when contacted; the only suspected "beverage" had been identified as urine; Plaintiff had spoken coherently and identified his location; no officer had verbalized an alcohol odor; Officer Melano had declined to administer certain FSTs due to ground conditions; and Plaintiff had exercised his statutory right under Vehicle Code section 23612(i) to decline a voluntary PAS test. No new observation or evidence intervened between the PAS refusal and the arrest. Plaintiff's exercise of the statutory right to refuse the PAS test could not itself supply the probable cause that was otherwise absent. Thomas v. Dillard, 818 F.3d 864, 884-85 (9th Cir. 2016) (refusal to consent to a search cannot create reasonable suspicion or establish probable cause). Moreover, officers evaluating probable cause may not disregard facts tending to dissipate it. Sialoi v. City of San Diego, 823 F.3d 1223, 1233 (9th Cir. 2016) (continued seizure unlawful after officers learned that suspected weapon was a toy; applying United States v. Lopez, 482 F.3d 1067 (9th Cir. 2007)). Here, Officer Melano's contemporaneous identification of the cup's contents as urine was a fact tending to dissipate the suspicion that had prompted the investigation, and Defendants disregarded it.

51. CHP's subsequent issuance of the Penal Code section 851.6 Detention Certificate -- reclassifying the event as a detention for "insufficient grounds" -- and the Alameda County District Attorney's declination to file charges are consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

52. The right to be free from arrest without probable cause was clearly established well before November 1, 2024. Beck v. Ohio, 379 U.S. 89 (1964); Devenpeck, 543 U.S. at 152.

53. Defendant Meza-Gonzalez personally effected the arrest. Defendant Melano was an integral participant: he conducted the initial vehicle entry and search, administered the field sobriety exercises, communicated his investigative findings to Meza-Gonzalez throughout the encounter, and remained present and actively engaged in the joint investigation up to and through the moment of arrest without objection or intervention. The arrest was the culmination of a joint investigation in which both officers participated and to which both officers contributed. As a direct and proximate result, Plaintiff was subjected to custodial confinement, including loss of liberty at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail.

FOURTH CAUSE OF ACTION

Fourth Amendment -- Unlawful Warrantless Entry
(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

54. Plaintiff re-alleges paragraphs 1 through 37.

55. Opening the door of a private vehicle and entering or reaching into its interior constitutes a Fourth Amendment search. United States v. Ngumezi, 980 F.3d 1285, 1289 (9th Cir. 2020) (officer who opened passenger door, leaned inside, and questioned driver conducted a Fourth Amendment search). A warrantless search is presumptively unreasonable absent consent

or a recognized exception.

56. At 00:56:43, Defendant Melano opened the front passenger-side door of Plaintiff's vehicle while Plaintiff was asleep. No consent was given. No warrant existed. No objectively observable facts indicated that Plaintiff required immediate medical assistance: the dashcam shows a vehicle parked intact on the shoulder with no visible damage, no smoke or fire, no crash debris, and an occupant in a normal resting posture. The officers' own words on the recording preceding the entry ("It's a rental," "It wasn't here earlier," "I think it's booze") reflect investigative interest, not a response to an observed emergency. Ngumezi, 980 F.3d at 1289.

57. The right to be free from warrantless entry into a vehicle absent consent, exigency, or an applicable exception was clearly established before November 1, 2024. Ngumezi, 980 F.3d at 1289.

58. Defendant Melano personally opened the door. Defendant Meza-Gonzalez was present and did not intervene. As a direct and proximate result of the warrantless entry, Plaintiff's constitutionally protected privacy interest in his vehicle was violated, and the entry initiated the chain of events leading to the subsequent search, prolonged detention, arrest, and forced blood extraction.

FIFTH CAUSE OF ACTION

Fourth Amendment -- Unlawful Search

(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

59. Plaintiff re-alleges paragraphs 1 through 37.

60. Following the warrantless entry, Defendant Melano reached into the vehicle, seized

the cup from the center console area, smelled it, and examined its contents. Defendant Meza-Gonzalez directed Plaintiff's attention and movements during the encounter while Melano conducted the physical search. No consent was given. No warrant existed. No exigent circumstance was present.

61. To the extent probable cause to search arose from Melano's observation of the cup, any such basis was materially undermined when Melano personally seized, smelled, and identified the liquid as urine (00:58:49-00:59:07). The continuing warrantless search of the vehicle thereafter required some independent lawful justification. None was present. Ngumezi, 980 F.3d at 1289.

62. The right to be free from a warrantless vehicle search absent probable cause, consent, or an applicable exception was clearly established before November 1, 2024. Ngumezi, 980 F.3d at 1289.

63. As a direct and proximate result of the unlawful search, evidence obtained from Plaintiff's vehicle was used to prolong the detention and to support the investigation that culminated in the arrest and forced blood extraction.

SIXTH CAUSE OF ACTION

First Amendment -- Retaliation for Exercise of Statutory Right to Refuse a Voluntary Preliminary Alcohol Screening Test
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

64. Plaintiff re-alleges paragraphs 1 through 37.

65. To state a First Amendment retaliation claim, a plaintiff must allege (i) constitutionally protected activity; (ii) an adverse action; and (iii) a causal connection. Nieves v. Bartlett, 587 U.S. 391, 398-99 (2019); Ballentine v. Tucker, 28 F.4th 54, 62 (9th Cir. 2022).

66. Plaintiff engaged in protected activity. Under California Vehicle Code section 23612(i), a PAS test is a voluntary investigative tool for drivers not on DUI probation. Refusal carries no statutory consequence. Officer Meza-Gonzalez confirmed its voluntary nature at timestamp 01:10:54: "You're not required to do this." The exercise of a statutory right to refuse a voluntary investigative procedure is constitutionally protected conduct. Ballentine, 28 F.4th at 62; Camara v. Municipal Court, 387 U.S. 523, 528-33 (1967).

67. Defendants took an adverse action. At timestamp 01:11:15, Plaintiff declined the PAS test. Eighteen seconds later, at timestamp 01:11:33, Officer Meza-Gonzalez placed Plaintiff under arrest. No new evidence of impairment was observed or articulated between the refusal and the arrest.

68. The arrest was causally connected to the refusal. The temporal proximity -- eighteen seconds -- supports an inference of causation. That inference is reinforced by Officer Meza-Gonzalez's own statement at timestamp 01:11:03, captured on the dashcam recording: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That statement, made moments before the refusal and arrest, expressly conditioned the arrest decision on whether Plaintiff consented to or refused the voluntary test.

69. Nieves does not bar this claim. Under Nieves, a retaliatory-arrest claim survives even if probable cause existed if the plaintiff provides objective evidence that similarly situated individuals who did not engage in the same protected conduct were not arrested. 587 U.S. at 407; see also Gonzalez v. Trevino, 602 U.S. 653 (2024) (plaintiff need not identify virtually identical comparator but must provide objective evidence of differential treatment). Here, the PAS test is

statutorily voluntary under section 23612(i) and refusal carries no statutory penalty; drivers who comply with a PAS request are not subjected to immediate custodial arrest solely on that basis when, as here, the remaining objective indicia of impairment are absent. In the alternative, as alleged in the Third Cause of Action, no probable cause existed for the arrest. The right to be free from retaliatory arrest for exercising a statutory right was clearly established before November 1, 2024. Ballentine, 28 F.4th at 62; Nieves, 587 U.S. at 398-99.

70. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 36-37.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, as follows:

A. Compensatory damages against each Defendant in an amount according to proof at trial, including but not limited to: loss of liberty and physical and emotional suffering from the unlawful detention, arrest, and compelled blood extraction; lost wages and lost earning capacity exceeding $214,000 from November 1, 2024 through the present, calculated from Plaintiff's contemporaneous rate of $33.35 regular and $50.03 premium; continuing impairment of future earning capacity as a Class A commercial driver; out-of-pocket expenses including SR-22 premiums, CDL reissue fee, and vehicle towing and impound costs; and emotional distress, humiliation, and reputational injury;

B. Punitive damages against each Defendant in an amount sufficient to punish and deter;

C. Taxable costs as permitted by law, and reasonable attorney's fees under 42 U.S.C.

section 1988 to the extent recoverable;

D. Pre- and post-judgment interest; and

E. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff demands a trial by jury on all issues so triable.

Dated: August 12, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per